



3
LEVEL

Fiqh

Islamic Jurisprudence



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Education



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Fiqh

Islamic Jurisprudence

Level 3

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Preface

Praise be to Allah, Lord of the worlds, and blessings and peace be upon the noblest of the Prophets and Messengers, our Prophet Muhammad, and upon all his family and Companions. To proceed:

Islamic knowledge is one of the most important necessities that the Muslim needs in his life; the entire ummah, in its efforts to rebuild Islamic civilization, is in need of it. Hence the religious texts point out the importance of Islamic knowledge and its bearers. Allah ﷻ says: *{Allah witnesses that there is no deity except Him, and [so do] the angels and those of knowledge - [that He is] maintaining [creation] in justice. There is no deity except Him, the Exalted in Might, the Wise}* [Aal Imran 3:18]. Ash-Shawkani رحمه الله said: What is meant by those of knowledge here is the scholars of the Quran and Sunnah. And Allah ﷻ says: *{and say, "My Lord, increase me in knowledge"}* [Ta-Ha 20:114].

In the hadith it says: **«Whoever follows a path seeking knowledge thereby, Allah will make easy for him a path to Paradise»**. Narrated by Muslim.

This series of textbooks comes to serve the community, with the aim of conveying Islamic knowledge by various methods and making it readily available to those who seek it. We hope that it will be another source of knowledge for academic programs and that it will be a support and help to those who want to acquire more Islamic knowledge and education, in an effort to achieve the main goal, which is to spread and instill sound Islamic knowledge on a sound academic foundation and in accordance with correct beliefs, based on the Book of Allah and the Sunnah of His Prophet ﷺ, in a modern and easily-understood style. We ask Allah ﷻ to grant us all beneficial knowledge, enable us to do righteous deeds, guide us and help us to be sincere in our efforts.



The Zad Academy Series

Fiqh
Islamic Jurisprudence
Level 3



1

The Book of Fasting



In this unit we will study

Definition of fasting

Ruling on fasting Ramadan

Conditions of it being obligatory to fast Ramadan

Categories of fasting

Excuses that make it permissible not to fast

Things that invalidate the fast

Things that are mustahabb (encouraged) when fasting

Things that are makruh (disliked) when fasting

Making up missed fasts

Voluntary fasts

Definition of fasting:

In linguistic terms, the word siyam (fasting) means abstaining.

In Islamic terminology, siyam refers to worshipping Allah ﷻ by refraining from eating, drinking and everything else that invalidates the fast, from the break of dawn until sunset.

The virtue of fasting:

It was narrated that Abu Hurayrah رضي الله عنه said: The Messenger of Allah صلى الله عليه وسلم said: «Allah عز وجل said: 'Every deed of the son of Adam is for him, except fasting. It is for Me and I shall reward for it.' Fasting is a shield, so when it is a day when one of you is fasting, let him not utter any obscene speech that day or raise his voice. If anyone reviles him or argues with him, let him say: 'I am a person who is fasting.' By the One in Whose Hand is the soul of Muhammad, the smell of the mouth of the fasting person will be better with Allah on the Day of Resurrection than the fragrance of musk. The fasting person has two moments of joy that he enjoys: when he breaks his fast he rejoices at breaking his fast, and when he meets his Lord he will rejoice because of his fasting.»

Narrated by al-Bukhari and Muslim.

It was narrated from Sahl رضي الله عنه that the Prophet صلى الله عليه وسلم said: «In Paradise there is a gate called ar-Rayyan, through which those who fast will enter on the Day of Resurrection, and no one else but them will enter it. It will be said: 'Where are those who used to fast?' And they will get up. No one else will enter through it except them. When they have entered, it will be shut and no one else will enter through it.» Narrated by al-Bukhari and Muslim.

And there are many hadiths on this topic.

Fasting combines the three types of patience:

- ➔ Patience in obeying Allah, because the fasting person puts up with hunger, thirst and intense heat.
- ➔ Patience in refraining from disobeying Allah عز وجل, because the fasting person avoids what is forbidden for the one who is fasting.
- ➔ Patience in accepting the divine decree, because the fasting person is affected by the discomfort of thirst, hunger, tiredness and feeling weak. Hence fasting is one of the most sublime types of patience, because it combines the three types of patience. Allah عز وجل says: *{Indeed, the patient will be given their reward without account}* [az-Zumar 39:10].



Is it stipulated that the intention (niyyah) to fast should be formed from the night before?

Yes, forming the intention is a condition of the fast being valid. This means that the one who wants to fast should form the intention to abstain from things that break the fast, in obedience to the command of Allah.

This is indicated by the words of the Prophet ﷺ: «**Actions are but by intentions, and each person will have but that which he intended.**» Narrated by al-Bukhari and Muslim.

It is not prescribed to utter the intention out loud; rather if you decide to fast and form the intention to do so in your heart, that is sufficient.

The time to form the intention for an obligatory fast begins from sunset until just before the break of dawn.

What is obligatory when fasting is to abstain from everything that breaks the fast, namely food, drink, intercourse and anything that is akin to them, from the break of dawn until sunset, because Allah ﷻ says: *{So now, have relations with them and seek that which Allah has decreed for you. And eat and drink until the white thread of dawn becomes distinct to you from the black thread [of night]. Then complete the fast until the sunset}* [al-Baqarah 2:187].

What is meant by the white thread and the black thread is the brightness of the day and the darkness of the night.

In the case of supererogatory (nafil) fasts, it is not stipulated that one should form the intention from the night before.

It is valid for the Muslim to intend a supererogatory fast on the day itself, so long as he has not consumed or done anything that breaks the fast.

According to the hadith narrated from Aisha رضي الله عنها, she said: The Prophet ﷺ came in one day and said: «**Do you have anything [to eat]?**» We said: No. He said: «**Then I am fasting.**» Narrated by al-Bukhari and Muslim. Thus he formed the intention to fast on the day itself.

Umm ad-Darda said: Abu'd-Darda used to say: Do you have anything for breakfast? And if we said no, he would say: Then I am fasting today. Then al-Bukhari said: Abu Talha, Abu Hurayrah, Ibn Abbas and Hudhayfah رضي الله عنه also did that.



Ruling on fasting Ramadan:

Fasting Ramadan is obligatory for every accountable person, because Allah ﷻ says: *{O you who have believed, decreed upon you is fasting as it was decreed upon those before you, that you may become righteous}* [al-Baqarah 2:183] *{So whoever sights [the new moon of] the month, let him fast it}* [al-Baqarah 2:185].

And it was narrated from Talha ibn Ubaydillah that a Bedouin with unkempt hair came to the Prophet ﷺ and said: O Messenger of Allah, tell me what Allah has enjoined upon me of fasting. He said: «**The month of Ramadan.**» He said: Do I have to fast at any other time? He said: «**No, unless you do it voluntarily.**» Narrated by al-Bukhari and Muslim.

The scholars of the ummah are unanimously agreed that fasting Ramadan is obligatory, and that whoever denies that is a disbeliever and an apostate.



Sighting the new moon:

Sighting the new moon is what counts to prove that the month of Ramadan has begun, because the Prophet ﷺ said: «**When you see it, then fast.**» Narrated by al-Bukhari and Muslim. So if a Muslim of sound character sights the new moon of Ramadan, then it is proven that the month has begun on the basis of this testimony. If the new moon is not sighted, then it is obligatory to complete the month of Shaban as thirty days, because the Prophet ﷺ said: «**Fast when you see it and stop fasting when you see it, and if it is too cloudy for you to see it, then complete the month of Shaban as thirty days.**» Narrated by al-Bukhari and Muslim.

Each land has its own moon sighting. In Sahih Muslim it is narrated from Kurayb that when he went to Syria, when Muawiyah ؓ was its governor, Kurayb said: When I came to Syria, Ramadan had started whilst I was in Syria. We sighted the new moon on the night before Friday. Then I came to Madinah at the end of the month, and Ibn Abbas asked me about the sighting of the moon: When did you sight the new moon? So I told him, and he said: But we sighted it on the night before Saturday, so we will carry on fasting until we complete thirty days unless we sight the moon. I said: Is it not enough that Muawiyah sighted it and fasted? He said: No; this is what the Messenger of Allah ﷺ instructed us to do.



This view is the most likely to be correct, because of the evidence. It is also supported by the following:



The general meaning of the verse in which Allah ﷻ says: *{So whoever sights [the new moon of] the month, let him fast it}* [al-Baqarah 2:185].



And the general meaning of the words of the Prophet ﷺ: **«Fast when you see it and stop fasting when you see it.»** Narrated by al-Bukhari and Muslim.

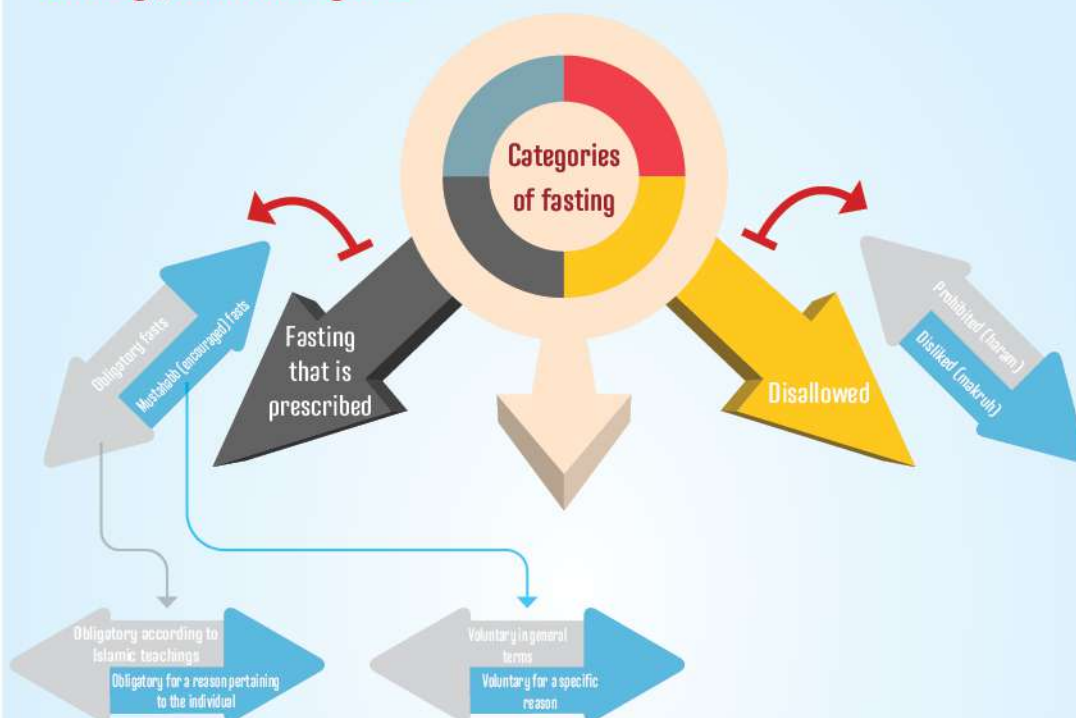
With regard to the end of the month of Ramadan, it is proven by sighting the new moon of Shawwal, with the testimony of two Muslims of good character. If it is not sighted, then it is obligatory to complete the month of Ramadan as thirty days.

Conditions of it being obligatory to fast the month of Ramadan:

- 1 **Being Muslim.** It is not obligatory for a disbeliever and is not valid if he does it, because his acts of worship are not valid.
- 2 **Being adult.** It is not obligatory for a minor who has not yet reached the age of puberty, although a child's fast is valid if he has reached the age of discernment, and his guardian will be rewarded for teaching him.
- 3 **Being of sound mind.** It is not obligatory for one who is insane, and it is not valid on his part even if he fasts, because the Prophet ﷺ said: **«The Pen has been lifted from three: from the sleeper until he awakes, from the child until he reaches puberty and from the insane person until he comes to his senses.»** Narrated by Abu Dawud and at-Tirmidhi; classed as sahih by al-Albani.
- 4 **Being resident (and not travelling).** It is not obligatory for the traveller.
- 5 **Being able to fast.** It is not obligatory for one who is sick, because Allah ﷻ says: *{and whoever is ill or on a journey – then an equal number of other days}* [al-Baqarah 2:185].
- 6 **A woman should be free of menses and nifas (postpartum bleeding).** If a woman is menstruating or bleeding following childbirth, it is not obligatory for her to fast; in fact it is forbidden for her to fast and it will not be accepted from her, because the Prophet ﷺ said: **«Is it not the case that when she gets her menses, she does not pray or fast?»** Narrated by al-Bukhari.
It is obligatory for a woman who gets her menses or who bleeds following childbirth to make up the fasts later on, because Aisha رضي الله عنها said: **«That used to happen to us, and we were instructed to make up the fasts, but we were not instructed to make up the prayers».** Narrated by Muslim.

Categories of fasting:

Fasting may be divided, in terms of it being enjoined or prohibited according to Islamic teachings, into two categories:



1. Fasting that is prescribed according to Islamic teachings. This may be divided into two categories:

a Obligatory fasting, which is of two types:

- 1 That which is obligatory according to the religious text.** This is the fast of Ramadan. Ibn Abd al-Barr said: The scholars are unanimously agreed that there is nothing obligatory with regard to fasting except the month of Ramadan.
- 2 That which becomes obligatory for a reason pertaining to the individual.** This refers to fasting in fulfilment of a vow, or as an act of expiation, or making up a missed obligatory fast.

b **Mustahabb (recommended) fasting, or voluntary fasts.** The commands related to such fasts signify that they are recommended (as opposed to obligatory). They are also of two types:

- 1** **Fasts that are not connected** to a particular time by the texts, so it is recommended to do such fasts at any time, except on days when fasting is not allowed.
- 2** **Specific voluntary fasts.** These are fasts which the texts have connected to specific times, such as fasting six days of Shawwal; fasting on Mondays and Thursdays; fasting on the day of Arafah; and fasting on Tasua and Ashura (the ninth and tenth of Muharram).

2. Fasting that is not allowed according to Islamic teachings. This may be divided into two categories:

- 1** **The first category: Fasting that is prohibited,** such as fasting on the two Eids and on the days of at-Tashreeq (11th, 12th and 13th of Dhu'l-Hijjah), and fasting on the day of uncertainty.
- 2** **Fasting that is disliked (makruh),** such as fasting on a Friday on its own.



The early generations (salaf) and the Quran in Ramadan:

It was narrated from Fatima رضي الله عنها that her father صلى الله عليه وسلم told her that Jibreel عليه السلام used to review the Quran with him once every year, but in the year in which he died, he reviewed it with him twice. Agreed upon. According to the hadith of Ibn Abbas رضي الله عنه, the Prophet صلى الله عليه وسلم and Jibreel reviewed it together at night. Agreed upon.

Hence the early generations acknowledged the great virtue (of reading and studying Quran), and they made Ramadan the month of the Quran. When Ramadan began, az-Zuhri said: It is the month of reciting the Quran and feeding the poor.

When Ramadan began, Imam Malik would stop reading hadith and sitting with the scholars, and he would focus instead on reading Quran from the Mushaf.

When Ramadan began, Sufyan ath-Thawri would stop doing other acts of worship, and focus on reading Quran.

In Ramadan, ash-Shafi'i would complete reading the entire Quran sixty times outside of prayer. Ibn Rajab رحمته الله said, after quoting these reports: The prohibition on reading the entire Quran in less than three days refers to doing that persistently. But at times of special virtue, such as the month of Ramadan, and especially on the nights in which Laylat al-Qadr is sought, or in places of special virtue, such as Makkah, it is recommended to read Quran a great deal, so as to make the most of the time and place.



- ➔ Fasting is a means of showing gratitude for blessings.
- ➔ Fasting is a means of giving up haram things.
- ➔ By means of fasting, a person may overcome his whims and desires, because when a person is full, he starts to wish for desires, but if he is hungry, he will refrain from what he desires.
- ➔ Fasting instills compassion and kindness towards the poor and needy.
- ➔ By fasting one may subdue the Shaytan and weaken him, so his waswasah (intrusive thoughts) are weakened and sins are reduced.
- ➔ Fasting trains a person to remember that Allah ﷻ is always watching, so he will give up his whims and desires even though he is able to pursue them, because he knows that Allah sees him.
- ➔ It helps one to turn away from this world and its desires, and encourages one to seek that which is with Allah ﷻ.

The benefits of fasting include the following:

Note:

If the fasting person eats something, thinking that the sun has set or that dawn has not yet broken, then he finds out that he was mistaken, the correct scholarly view is that he does not have to make up that day.

In Islamic teachings, there is no such thing as imsak (the time to stop eating and drinking several minutes before dawn breaks) as people observe nowadays and include the time for it in prayer timetables. The real time to stop eating and drinking (imsak) is when the time for the true dawn first begins.



It is permissible to use astronomical equipment to sight the new moon. This is in contrast to using astronomical calculations, which it is not permissible to rely on.





Taking off in an airplane and the like after sunset or before it:

Concerning this matter there are two scenarios:

The first scenario: the sun sets in the city where a person is, so he breaks his fast, then he boards a plane and the plane takes off and climbs high, and he sees that the sun is still there. In this case, his fast is valid and his breaking of the fast is valid, because he broke his fast on the basis of evidence from the Quran and Sunnah, and he does not have to stop eating and drinking.

The second scenario: the fasting person travels just before the sun sets in his city, then the plane takes off, heading westwards. In that case, sunset will be delayed for him, and the sun will still be shining for one or two hours more. In this scenario, he should not break his fast until the sun sets, because Allah ﷻ says: *{Then complete the fast until the sunset}*

[al-Baqarah 2:187].



Activities

Answer the following:

- 1 Write briefly about fasting, covering the following points: its virtue – the wisdom behind it – its conditions:
- 2 List the conditions for it being obligatory to fast Ramadan.
- 3 State the difference between the intention for an obligatory fast and the intention for a supererogatory fast.
- 4 Write a brief essay about the differences of scholarly opinion regarding sighting of the new moon.
- 5 What are the prescribed ways of ascertaining whether the new month has begun?
- 6 List the categories of fasting in detail.
- 7 Complete the following:
 - a If the people in one city see the new moon and those in another city do not see it, then they must and it is not obligatory for
 - b It is obligatory for women who menstruate or bleed following childbirth to make up missed fasts, because Aisha رضي الله عنها said:

Excuses that make it permissible not to fast:

1. Travel

It is permissible for travellers not to fast in all cases, even if the traveller is able to fast, based on the verse in which Allah ﷻ says: *{So whoever among you is ill or on a journey [during them] - then an equal number of days [are to be made up]}* [al-Baqarah 2:184]. In as-Sahihayn it is narrated that Anas ibn Malik ؓ said: “We would travel with the Prophet ﷺ, and the one who was fasting did not shame the one who was not fasting, and the one who was not fasting did not shame the one who was fasting.”

With regard to a fasting person who is travelling, there are three scenarios:

The first scenario: it is the same whether he fasts or not, meaning that fasting will not affect him. In this case, fasting is better, because of the hadith of Anas ؓ quoted above.

The second scenario: when not fasting is easier for him. In this case, not fasting is better, and if it is difficult for him, then in his case fasting is makruh (disliked), because doing that which is difficult when there is a concession gives the impression that one is turning away from the concession granted by Allah. But if he can put up with the hardship without suffering harm, it is permissible for him to fast, based on the hadith of Abu'd-Darda ؓ in as-Sahihayn in which he said: We set out with the Messenger of Allah ﷺ on one of his journeys in the month of Ramadan, on a day when it was so hot that one of us would put his hand on his head because of the extreme heat. And no one among us was fasting except the Messenger of Allah ﷺ and Abdullah ibn Rawahah ؓ.

The third scenario: when fasting would cause extreme, unbearable hardship. In this case, fasting becomes haram for the traveller, because of the report in as-Sahihayn from Jabir ibn Abdillah ؓ, who said: The Messenger of Allah ﷺ was on a journey, and he saw a crowd and a man whom they were shading. He said: «**What's all this?**» They said: He is fasting. He said: «**It is not righteousness to fast when travelling.**»

By means of this categorization, we may reconcile between the reports.

2. Sickness

The religious texts indicate that sickness is regarded as a reason that makes it permissible not to fast. But what is the type of sickness that makes it permissible not to fast? It is the kind of sickness that makes it extremely difficult to fast, or where the sick person fears that he may die of that sickness if he fasts, or he fears that fasting will exacerbate his sickness or delay recovery.

But if the fasting person will not be harmed by fasting, such as one who has scabies or a toothache or a slight headache, and the like, it is not permissible for him not to fast.

Allah ﷻ says: *{So whoever among you is ill or on a journey [during them] – then an equal number of days [are to be made up]}* [al-Baqarah 2:184].

This refers to sickness from which there is the hope of recovery. However, in the case of sickness from which there is no hope of recovery, the individual is permitted not to fast, and he does not have to make up those days; rather he must pay the fidyah (compensation), which is to feed one poor person for each day that he did not fast, because Allah ﷻ says: *{For those who can fast only with extreme difficulty, there is a way to compensate, which is to feed a needy person [for each day]}* [al-Baqarah 2:184].

Ibn Abbas رضي الله عنه said: This refers to the old man and old woman who are not able to fast; they should feed one poor person for each day that they do not fast. Narrated by al-Bukhari.

The amount of food to be given is one half of one saa' of wheat, dates, rice or other local staple food.



Shaykh Ibn Uthaymeen divided sick people into three categories:

- 1 The one who will not be affected by fasting, such as one who has a headache or a cold. In this case, it is not permissible for him not to fast.
- 2 The one for whom it is difficult to fast, but he will not be harmed by it. In this case, it is disliked for him to fast and it is Sunnah for him not to fast.
- 3 The one for whom it is difficult to fast and it will harm him, such as kidney patients and those with diabetes. In this case, it is haram to fast.



Workers with physically demanding jobs:

In the case of someone who has a physically demanding job, if he fears that fasting will cause physical harm, he should refrain from fasting and make the fasts up later on, if he cannot afford to stop working during Ramadan. If he can afford not to work during Ramadan, then he is sinning if he does not fast. But if not working will cause him financial hardship, then there is no sin on him for not fasting, because he has an excuse. The majority of fuqaha have stated that those who have physically demanding jobs – such as harvesters, bakers, blacksmiths and miners – should eat suhur and form the intention to fast, then if they experience severe thirst or hunger from which they fear harm, it is permissible for them to break the fast, and they must make up the fast later on. If they suffer actual harm, they must break the fast, because Allah ﷻ says: *{And do not kill yourselves [or one another]}. Indeed, Allah is to you ever Merciful}* [an-Nisa 4:29].

3. Pregnancy and breastfeeding

With regard to the woman who is breast-feeding, and also one who is pregnant, there are two scenarios:

- ➔ **The first scenario:** she is not affected by fasting, so it is not difficult for her to fast and there is no fear for her child. In this case, it is obligatory for her to fast and it is not permissible for her to not fast.
- ➔ **The second scenario:** she fears for herself or her child if she fasts. In this case, she may break her fast, but she has to make up the days on which she does not fast. It was narrated that Anas رضي الله عنه said: The Messenger of Allah ﷺ said: «Allah has waived for the traveller half of the prayer and fasting, and for the pregnant or breast-feeding woman fasting.» Narrated by an-Nasai and by at-Tirmidhi, who classed it as hasan.

Some of the scholars stated that if she fears for her child, then she must not fast and it is haram for her to fast.

If a pregnant or breast-feeding woman does not fast, she only has to make up the missed days, according to the correct scholarly view, whether she feared for herself or for her child.

4. Menstruation and postpartum bleeding (nifas):

The reasons that make it permissible not to fast include menstruation and postpartum bleeding (nifas). We have noted above that the woman who is menstruating or bleeding following childbirth must not fast, and it is haram for her to fast, because of the hadith of Abu Saeed al-Khudri رضي الله عنه, according to which the Prophet ﷺ said: «**Is it not the case that when she menstruates, she does not pray or fast? That is what is meant by her lacking in religious commitment.**» Narrated by al-Bukhari.

Women are obliged to make up the fasts that they missed during menses and nifas, because Aisha رضي الله عنها said: That used to happen to us, and we were instructed to make up the fasts, but we were not instructed to make up the prayers. Narrated by Muslim.

Related issues !

- ➔ If a woman gets her menses during the day in Ramadan, when she is fasting, she must stop fasting and she must make up that day.
- ➔ If she becomes pure (that is, if her menses ends) after the break of dawn, even if it is only one moment after, she must make up that day, but she does not have to refrain from eating and drinking during that day, according to the correct view.
- ➔ It is valid for a woman who was menstruating or bleeding following childbirth to fast, if she becomes pure (that is, her bleeding stops) before dawn, even if she does not do ghusl until after dawn has broken, because she has now become one of those who are obliged to fast, on condition that she formed the intention to fast before dawn broke.

➤ If a woman has a miscarriage during the day in Ramadan, if no human features had appeared in the embryo, then her bleeding is not nifas; rather it is irregular bleeding, so she should fast and pray.

➤ If human features had appeared in the embryo, then the bleeding is nifas, so it is not permissible for her to pray or fast.

The minimum period after which human features appear in the embryo is eighty days from the beginning of pregnancy, but in most cases it is ninety days.



Related issues:

1

Those who travel constantly, such as truck drivers, train drivers, pilots and the like may avail themselves of the concession of travel, because Allah granted the concession for travel in general terms, without qualification. But if a person is able, it is Sunnah to fast.

2

It is permissible for the traveller to not fast, even if he is travelling by a comfortable means of transportation, whether he experiences hardship or not, because the reason for the concession allowing him not to fast is travel, without further qualification.

3

If a traveller arrives during the day and he is not fasting, then the correct view is that he is not obliged to refrain from eating and drinking for the rest of the day.

4

A woman who is experiencing irregular bleeding (istihadah) must fast and pray, and her prayers and fasts are valid.



Activities

Put a checkmark (✓) or a cross mark (X), and underline what is incorrect, in the following:

- 1 If a woman gets her menses or is bleeding following childbirth, it is recommended (mustahabb) for her not to fast in Ramadan, and it is disliked (makruh) for her to fast. ()
- 2 If a traveller arrives during the day and he is not fasting, then the correct view is that he is not obliged to refrain from eating and drinking for the rest of the day. ()
- 3 A sick person for whom there is no hope of recovery has permission not to fast, but he must pay a fidyah by feeding one poor person for each day. ()
- 4 For those who travel constantly, such as truck drivers, train drivers, pilots and the like, it is not permissible for them not to fast. ()
- 5 If a woman has a miscarriage before forty days of pregnancy, the blood that comes out of her is nifas and it is not permissible for her to fast. ()
- 6 It is permissible for a traveller to fast whilst travelling, whether fasting is difficult for him or not. ()

Things that invalidate the fast

The fast is invalidated if the fasting person does any of the following things.

1. **Eating or drinking deliberately**, because Allah ﷺ says: *{And eat and drink until the white thread of dawn becomes distinct to you from the black thread [of night]. Then complete the fast until the sunset}* [al-Baqarah 2:187].

But if a person eats or drinks by mistake, forgetting that he is fasting, then his fast is valid, because the Prophet ﷺ said: «**Whoever forgets when he is fasting and eats or drinks, let him complete his fast, for it is Allah Who has fed him and given him to drink.**» Narrated by al-Bukhari and Muslim.

As soon as he remembers, he must stop eating and drinking immediately.

This applies whether his fast is obligatory or supererogatory.

We may add to eating and drinking whatever comes under the same heading, such as injections that provide nutrients to replace food and drink, because even though they are not actually food or drink, they come under the same heading as food and drink, because they replace them.

With regard to injections that do not provide nutrients or take the place of food and drink, they do not break the fast, whether they are administered in a vein (intravenous) or muscle (intramuscular) or anywhere else on the body.



Kohl, eye drops, ear drops and the like do not invalidate the fast.



There is nothing wrong with the fasting person using an inhaler for asthma, but if he delays that until nighttime, that is preferable.



2. Vomiting deliberately:

This refers to expelling the contents of the stomach via the mouth. If someone vomits deliberately, knowing that he is fasting, his fast is rendered invalid. However, if he is overwhelmed by the urge to vomit and does so involuntarily, that does not invalidate his fast. The evidence for this is the hadith in which the Prophet ﷺ said: **«Whoever is overwhelmed by the urge to vomit does not have to make up that day, but whoever makes himself vomit deliberately, let him make it up.»** Narrated by Abu Dawud and at-Tirmidhi; classed as sahih by al-Albani.

3. Intercourse:

If a man has intercourse with his wife whilst fasting, deliberately and knowing that he is fasting, his fast is invalidated, and he is sinning by doing that. He should realize that if a man breaks the fast by having intercourse during the day in Ramadan, when fasting is obligatory for him, five things result from his having intercourse:

Firstly, he incurs a burden of sin.

Secondly, he must refrain from eating and drinking for the rest of that day.

Thirdly, his fast is invalidated.

Fourthly, he must make it up.

Fifthly, he must offer expiation, by freeing a slave. If that is not possible, then he must fast for two consecutive months. If he is unable to do that, then he must feed sixty poor persons.

That is because of the hadith in which it is narrated that someone said to the Prophet ﷺ: O Messenger of Allah, I am doomed! He said, **«What is the matter with you?»** He said: I had intercourse with my wife whilst I was fasting. The Messenger of Allah ﷺ said: **«Can you afford to manumit a slave?»** He said, No. He said, **«Are you able to fast for two consecutive months?»** He said, No. He said, **«Can you afford to feed sixty poor persons?»** He said, No. The Prophet ﷺ fell silent. Whilst we were (sitting) like that, a vessel of dates was brought to the Prophet ﷺ. He said, **«Where is the one who was asking?»** The man said, I am here. He said, **«Take this and give it in charity.»** The man said, To someone poorer than me, O Messenger of Allah? By Allah, there is no household between the two lava fields (i.e., in Madinah) that is poorer than my household. The Prophet ﷺ smiled so broadly that his eye teeth could be seen, then he said: **«Feed it to your family.»** Narrated by al-Bukhari and Muslim.

Suppositories, enemas and vaginal ultrasounds do not invalidate the fast.



4. Emission of semen (maniy), with desire.

The evidence for that is the words of Allah ﷺ in the hadith qudsi that is narrated in as-Sahihayn in which He says of the fasting person: **«He gives up his food, his drink and his desire for My sake.»**

In this case, the person must make up the broken fast, but does not have to offer expiation (kafaarah), because expiation is only required in the case of having intercourse.

With regard to a wet dream, or emission of semen without desire, such as in the case of sickness, that does not invalidate the fast, because it does not happen by the fasting person's choice.

With regard to madhiy (prostatic fluid), it does not invalidate the fast, even if it is emitted with desire and as a result of intimacy that does not involve intercourse.

If someone engages in the secret habit (masturbation) during the day in Ramadan and emits semen, or he sees something or thinks of something and ejaculates, his fast is invalidated; he must repent sincerely and do ghusl, and he must make up that day's fast, but he does not have to offer expiation.

If a person is junub when dawn breaks, his fast is valid. According to a hadith narrated from Aisha and Umm Salamah رضي الله عنهما, the authenticity of which is agreed upon, dawn would come when the Messenger of Allah ﷺ was junub as a result of marital relations, then he would do ghusl and fast.

5. Menses and post-partum bleeding:

If a woman's period begins, or she bleeds following childbirth, then her fast becomes invalid, because the Prophet ﷺ said concerning women: **«Is it not the case that if she gets her menses she does not pray and does not fast?»** Narrated by al-Bukhari.

Ruling on the fast of one who falls unconscious:

- ➔ If someone forms the intention to fast, then faints and remains unconscious for the entire day, his fast is not valid.
- ➔ If someone loses consciousness as a result of fainting, sickness or insanity whilst fasting, then he recovers, his fast is valid.

6.

Letting of blood through

wet cupping (hijamah):

That is because the Prophet ﷺ said: **«The cupper and the one to whom cupping is done have broken their fast.»**

Narrated by Abu Dawud and Ibn Majah, and by al-Bukhari in a mu'allaq report; classed as sahih by al-Albani.

7.

Apostasy:

If a Muslim apostatizes – Allah forbid – his fast is invalidated, because acts of worship done by a disbeliever are not valid, and because Allah ﷻ says: *{... if you should associate [anything] with Allah, your deeds would surely become worthless}* [az-Zumar 39:65].

- ➔ ➔ **The things mentioned above only invalidate the fast if three conditions are met, which are:**

The first condition: that the individual is aware of the Islamic rulings and of the time. If he is unaware of the Islamic rulings or of the time, then his fast is still valid.

The second condition: that he remembers that he is fasting. So if he forgets, and eats or drinks something by mistake, then his fast is still valid, and he does not have to make it up.

The third condition: that he does that with intention, meaning that he chooses to do this action that breaks the fast, and deliberately intends to do it.



Donating blood:

There is nothing wrong with the fasting person donating blood, if there is a need for that, and if the amount of blood taken from the donor is small according to medical opinion, and he does not have to make up that day. However, if the amount taken is large, then he should make up that day in order to be on the safe side. As for the person receiving a blood transfusion, the most correct scholarly view is that it invalidates the fast.



Related issues

1

It is stipulated that the fasts done in expiation for having intercourse during the day in Ramadan should be done consecutively, and they should be done according to the Hijri calendar, not the Gregorian.

2

The one who has intercourse during an obligatory fast other than Ramadan – such as making up a missed fast or a fast done in expiation – or a supererogatory fast, has invalidated his fast, but he does not have to offer expiation for that.

3

If someone who has a concession allowing him not to fast has intercourse, such as one who is travelling or one who is sick, there is no sin and no expiation is required. If a man returns from a journey and his wife's period ended and she became pure [and therefore she was not fasting] on the day he returns, it is permissible for them to have intercourse, even if that is during the day in Ramadan.

4

If someone consumes something that does not provide nutrition, such as soil, or he consumes something that is harmful, such as cigarettes, then that breaks the fast, because it is taken in through the usual route, namely the mouth.

5

It is permissible for one who is fasting to kiss his wife, on condition that he can control his desire. But if he fears that he may ejaculate or that his desire will be provoked, then he should not do that.

6

It is permissible for one who is fasting to swallow his saliva, even if he collects it in his mouth and then swallows it, so long as it is inside his mouth.

Regions in which the day is very long or very short.

The correct view concerning this issue is that fasting is obligatory during the day, no matter how long or short the day is; what matters is that there is night and day. Therefore so long as there is a clear distinction between them, they should both be taken into consideration when defining the time for fasting.

However, if day or night is ongoing, then what the Muslim should do is follow the timings of the nearest city or region in which night and day are distinct from one another.



Ruling on one who starts the fast in one city, then travels:



If a Muslim starts the fast of Ramadan in one city, then travels to another city, then with regard to starting and ending the fast, he comes under the rulings of the place to which he travelled, so he should end the fast with them when they end the fast.

- ➡ ➡ If he ends the fast with them and it means that he fasted fewer than twenty-nine days, he must make up one day after Eid.
- ➡ ➡ If he fasts with them and it means that he has fasted more than a month, he should still end the fast with them, such as a man who fasted in his city where the moon was sighted earlier, then he came to another city where the moon was sighted later and the month for them was complete, with thirty days. In this case, he must end the fast with them, even if it means that he fasts thirty-one days.



Activities

Complete the following:

- 1 It is stipulated that the fasts done in expiation for having intercourse during the day in Ramadan should be done, and they should be done according to the calendar.
- 2 is haram and invalidates the fast if it results in ejaculation, but if no ejaculation occurs, it does not invalidate the fast.
- 3 It is permissible for one who is fasting to kiss his wife on condition that
- 4 The one who has intercourse when he is fasting invalidates his fast, but he must
- 5 If someone consumes something that does not provide nutrition, such as soil, or he consumes something that is harmful, such as cigarettes, then that, because it is

Things that are encouraged (mustahabb) when fasting

Suhur: because the Prophet ﷺ said: «Eat suhur, for in suhur there is blessing (barakah).» Narrated by al-Bukhari and Muslim. It also helps one to cope with fasting.

A person is regarded as having had suhur even if he has a sip of water, because of the hadith narrated from Abu Saeed al-Khudri رضى الله عنه, who said: The Messenger of Allah ﷺ said: «Eating suhur is a blessing, so do not omit it, even if one of you only has a sip of water, for Allah عز وجل and His angels send blessings upon those who eat suhur.» Narrated by Ahmad; classed as sahih by al-Albani.

Delaying Suhur: because of the hadith narrated from Zayd ibn Thabit رضى الله عنه, who said: We ate suhur with the Messenger of Allah ﷺ, then we got up to pray. I [the narrator] said: How long was there between the two? He said: As long as it takes to recite fifty verses. Narrated by al-Bukhari and Muslim.

There is nothing wrong with the fasting person using the siwak, because of the general meaning of the Prophet's words: «Were it not that it would be too difficult for my ummah, I would have instructed them to use the siwak at the time of every prayer, and every time they do wudu.» Agreed upon.



It is Sunnah to do umrah in Ramadan, because the Prophet ﷺ said: «Umrah in Ramadan is equivalent to Hajj.» Narrated by al-Bukhari and Muslim.

Hastening to break the fast, because the Prophet ﷺ said: «The people will continue to be fine, so long as they hasten to break the fast.» Narrated by al-Bukhari and Muslim.

It is wrong for those who are fasting to delay breaking the fast until the muadhdhin says “Ashhadu an laa ilaaha illa Allah (I bear witness that there is no god worthy of worship except Allah).”

Breaking the fast with fresh dates: if fresh dates are not available, the fast may be broken with dried dates; it is mustahabb to eat an odd number. If no dates are available, then the fast may be broken with a few sips of water, because of the hadith narrated from Anas رضي الله عنه who said: The Messenger of Allah صلى الله عليه وسلم used to break his fast with fresh dates, before he prayed. If no fresh dates were available, he would break his fast with dried dates, and if no dates were available, he would break his fast with a few sips of water. Narrated by Abu Dawud, and by at-Tirmidhi, who classed it as hasan.



Supplication (dua): it is mustahabb for the fasting person to offer a great deal of supplication whilst fasting and at the time of breaking the fast, because the Prophet صلى الله عليه وسلم said: «**There are three whose supplication will not be rejected: the fasting person until he breaks his fast...**» Narrated and classed as hasan by at-Tirmidhi.



Doing a lot of righteous deeds, such as reading Quran; praying at night, especially in the last ten nights; giving charity; providing iftar to those who are fasting; and so on. Ibn Abbas رضي الله عنه said: The Messenger of Allah صلى الله عليه وسلم was the most generous of people in giving, and he was at his most generous during Ramadan, when Jibreel met with him. Jibreel would meet with him every night in Ramadan, and review the Quran with him. When Jibreel met with him, the Messenger of Allah صلى الله عليه وسلم was more generous than the blowing wind. Narrated by al-Bukhari and Muslim.

It was narrated from Aisha رضي الله عنها that she said: When the last ten nights of Ramadan came, the Prophet صلى الله عليه وسلم would tighten his izar (waist wrapper), stay up at night and wake his family up. Narrated by al-Bukhari and Muslim.

And the Prophet صلى الله عليه وسلم said: «**Whoever prays qiyam in Ramadan out of faith and in hope of reward, his previous sins will be forgiven him.**» Narrated by Muslim.

Things that are disliked (makruh) when fasting:

- ➔ **Going to extremes in rinsing the mouth and nose**, because the Prophet ﷺ said: «... **and go to extremes in rinsing your nose, unless you are fasting.**» Narrated and classed as sahih by at-Tirmidhi.

That is because if a person goes to extremes in rinsing the mouth and nose, water may reach his throat and stomach.



- ➔ **Kissing one's wife, for one who cannot control himself, because that may lead to ejaculation or to having intercourse.**

But if he can control himself, there is nothing wrong with that, because the Prophet ﷺ used to kiss his wife when he was fasting. Aisha رضي الله عنها said: And he was the most able of you to control his desire. Narrated by al-Bukhari and Muslim.



- ➔ **Tasting food unnecessarily.** If there is a need to taste it, there is nothing wrong with that, but one should be careful not to let any of that reach the throat.

- ➔ **Wasting time in idle pursuits**, because that leads to missing out on a great deal of reward.

- ➔ **Fasting uninterruptedly for two days or more**, because the Prophet ﷺ forbade that. It was narrated that Aisha رضي الله عنها said: The Messenger of Allah ﷺ forbade fasting uninterruptedly out of compassion towards them. They said: But you fast uninterruptedly. He said: «**I am not like you; my Lord feeds me and gives me to drink.**» Narrated by al-Bukhari.

The fasting person should guard his fast and avoid trading insults, quarrelling and the like. If someone reviles him or insults him, he should say: I am fasting, because the Prophet ﷺ said: «**When one of you is fasting he should avoid lewdness and quarrelling. If somebody fights or quarrels with him, he should say, 'I am fasting.'**» Narrated by al-Bukhari

and Muslim.



Activities

Answer the following:

- 1 List some of the things that are encouraged (mustahabb) when fasting. Use other sources.
- 2 The scholars have listed a number of mistakes that people make when fasting. Write about that.
- 3 The scholars differed with regard to the fasting person using the siwak after the sun has passed the meridian. Discuss this difference of opinion in brief, and state which view is more likely to be correct.
- 4 What is the ruling on lying, backbiting and watching haram things when fasting? What effect does that have on the fast?

Complete the following:

- 1 It is disliked (makruh) to go to extremes in rinsing the mouth and nose, lest
- 2 It is disliked (makruh) for the fasting person who cannot control his desire to kiss his wife, because that may lead to

Making up missed fasts:

If someone does not fast on one day in Ramadan, with no excuse, he has committed a grave sin, and he must repent, seek forgiveness and make up the day on which he broke the fast. If someone does not fast because of a valid excuse, such as sickness, travel and other excuses that make it permissible not to fast, then he must make up that day any time he wishes before the next Ramadan, but it is better for him to hasten to make it up, so as to discharge his duty and because that is more on the safe side, because something may happen to him that prevents him from fasting.

If he delays making up the fasts until the following Ramadan begins, then one of two scenarios must be the case:

The first scenario is that the delay was due to an excuse, such as if he was sick and his sickness continued until the next Ramadan came. In this case, there is no sin on him for delaying it, because he had an excuse, and all he has to do is make up the missed fasts only.

The second scenario is that the delay was with no excuse, such as if he was able to make up missed fasts, but he did not do so before the next Ramadan began.

In this case, he is sinning for delaying making up the fasts with no excuse, and the leading scholars are agreed that he must make it up, but they differed as to whether or not he is also required to offer expiation – by feeding one poor person for each day – in addition to making it up.

The correct view is that he does not have to offer expiation, but if he does offer expiation, it is good.

➡ ➡ When making up missed fasts, it is not stipulated that they be done consecutively; rather it is valid to do them either consecutively or separately, because Allah ﷻ says: *{So whoever among you is ill or on a journey [during them] – then an equal number of days [are to be made up]}* [al-Baqarah 2:184].

What may be understood is that there is nothing in the verse to indicate that the days should be made up consecutively. If that was stipulated, Allah ﷻ would have made it clear.



The majority of fuqaha are of the view that it is obligatory for the one who does not fast for several days in Ramadan to make up those days before the following Ramadan comes. They quoted as evidence for that the report narrated by al-Bukhari and Muslim from Aisha رضى الله عنها, who said: I used to have fasts that I still owed from Ramadan, and I could not make them up until Shaban, and that was because of the position of the Messenger of Allah ﷺ [as a husband]. Al-Hafiz said: It may be understood from her keenness to do that in Shaban that it is not permissible to delay making up missed fasts until the next Ramadan begins. End quote.

Voluntary fasts



Types of voluntary fast

- ▶ Fasting six days of the month of Shawwal, because of the proven report that Abu Ayub al-Ansari رضي الله عنه said: I heard the Messenger of Allah صلى الله عليه وسلم say: **«Whoever fasts Ramadan, then follows it with six days of Shawwal, it will be as if he fasted for a lifetime.»** Narrated by Muslim.
- ▶ Fasting on the day of Arafah, for one who is not at Hajj, because of the report narrated from Abu Qatadah رضي الله عنه, who said: The Messenger of Allah صلى الله عليه وسلم said: **«Fasting the day of Arafah, I ask Allah that it may expiate for (the sins of) the year that comes before it and the year that comes after it.»**
- ▶ Fasting the day of Ashura, because of the report narrated from Abu Qatadah رضي الله عنه, according to which the Prophet صلى الله عليه وسلم said: **«Fasting the day of Ashura, I ask Allah that it may expiate for (the sins of) the year that comes before it.»** Narrated by Muslim.

If someone has an excuse that persists until he dies before he is able to make up what he owes of Ramadan fasts, there is no blame on him, because Allah enjoined fasting other days to make up for missed fasts, but he was not able to do that, so it is waived in his case. As for the one who is able to make up the missed fasts, but he is heedless and does not make them up before death comes to him, his heir must fast on his behalf the days that he was able to make up but did not do so, because the Prophet صلى الله عليه وسلم said: **«Whoever dies owing missed fasts, his heir must fast them on his behalf.»** Agreed upon.

The best for the one who wants to fast Ashura is to fast one day before it or one day after it as well, because the Prophet صلى الله عليه وسلم said: **«If I am still alive next year, I will surely fast the ninth [of Muharram].»** Narrated by Muslim. That is because doing that is differing from the practice of the Jews.

There are many hadiths which speak of the virtue of voluntary fasts, including the following:

The hadith of Sahl رضي الله عنه, from the Messenger of Allah صلى الله عليه وسلم, who said: **«In Paradise there is a gate called ar-Rayyan, through which those who fast will enter on the Day of Resurrection, and no one else but them will enter it. It will be said: 'Where are those who used to fast?' And they will get up. No one else will enter through it except them. When they have entered, it will be shut and no one else will enter through it.»** Agreed upon. And he صلى الله عليه وسلم said: **«Whoever fasts one day for the sake of Allah, Allah will keep his face seventy years' distance away from the Fire.»** Narrated by al-Bukhari and Muslim.

➤ Fasting on Mondays and Thursdays every week, because of the proven report from Aisha رضي الله عنها: The Prophet صلى الله عليه وسلم was keen to fast on Mondays and Thursdays. Narrated and classed as sahih by at-Tirmidhi.

And because the Prophet صلى الله عليه وسلم said: «**Deeds are shown (to Allah) on Mondays and Thursdays, and I like my deeds to be shown when I am fasting.**» Narrated by Abu Dawud, and by at-Tirmidhi, who classed it as sahih.

➤ Fasting three days of every month, because the Prophet صلى الله عليه وسلم said to Abdullah ibn Amr رضي الله عنه: «**Fast three days of every month, for a good deed brings a tenfold reward, and that will be like fasting for a lifetime.**» Narrated by al-Bukhari.

➤ Fasting the first nine days of Dhu'l-Hijjah, because the Prophet صلى الله عليه وسلم said: «**There are no days on which righteous deeds are more beloved to Allah than these ten days [the first ten days of Dhu'l-Hijjah].**» Narrated by al-Bukhari.

And one of the wives of the Prophet صلى الله عليه وسلم said: The Messenger of Allah صلى الله عليه وسلم used to fast on the [first] nine days of Dhu'l-Hijjah... Narrated by Abu Dawud and an-Nasai; classed as sahih by al-Albani.

➤ Fasting during Muharram, because the Messenger of Allah صلى الله عليه وسلم said: «**The best fasting after Ramadan is fasting the sacred month of Allah, Muharram, and the best prayer after the obligatory prayers are prayers at night.**» Narrated by Muslim.

➤ Fasting alternate days. This is the best type of voluntary fast for the one who is able to do it, because the Prophet صلى الله عليه وسلم said: «**The best fast is the fast of Dawud عليه الصلاة والسلام; he used to fast one day and not the next [that is, alternate days].**» Narrated by al-Bukhari.



Is it permissible for one who does a voluntary fast to break his fast?

The correct view is that it is permissible. The evidence for that is the report narrated by Muslim from Aisha رضي الله عنها, who said: The Messenger of Allah صلى الله عليه وسلم came in one day and said: «**Do you have anything to eat?**» We said: No. He said: «**Then I am fasting.**» Then he came to us on another day, and we said: O Messenger of Allah, we have been given some hays – which was a dish made with dates, ghee and dried yoghurt – and he said: «**Show it to me, for I started my day fasting**» – then he ate some of it.

**What is disliked (makruh)
in terms of fasting:**



Singling out a Friday for a voluntary fast, because the Prophet ﷺ said: **«Do not fast on a Friday, unless you fast a day before it or a day after it.»**

Narrated by al-Bukhari and Muslim.

Singling out a Saturday for fasting, because the Prophet ﷺ said: **«Do not fast on Saturday, except for that which has become obligatory for you.»** Narrated by Abu Dawud, and by at-Tirmidhi, who classed it as hasan.

But it is permissible to fast it along with another day, because the Prophet ﷺ said to the Mother of the Believers Juwayriyah رضي الله عنها, when he came to her on a Friday when she was fasting: **«Did you fast yesterday?»** She said: No. He said: **«Do you intend to fast tomorrow?»** She said: No. He said: **«Then break your fast.»** Narrated by al-Bukhari.

Fasting all the time, because the Prophet ﷺ said: **«He has not fasted who fasts all the time.»**

Narrated by al-Bukhari and Muslim.

It is makruh to single out the month of Rajab for fasting, because the people of the Jahiliyyah used to venerate this month. It was narrated that Kharrashah ibn al-Hurr said: I saw Umar رضي الله عنه striking the hands of the people in Rajab so that they would put them in the vessels [of food, and start eating], and saying: Eat, for it is a month that the people of the Jahiliyyah used to venerate. Narrated by Ibn Abi Shaybah; classed as sahih by al-Albani.

What is haram in terms of fasting:

Fasting on the day of uncertainty, with the aim of being on the safe side with regard to Ramadan. This refers to the thirtieth day of Shaban, if it was cloudy and it was not possible to sight the new moon [hence there is uncertainty as to whether Ramadan has begun or not]. That is because of the report narrated from Ammar رضي الله عنه who said: Whoever fasts on the day concerning which there is uncertainty has disobeyed Abu'l-Qasim. Narrated by at-Tirmidhi; classed as sahih by al-Albani. And because the Prophet ﷺ said: **«No one of you should anticipate Ramadan by fasting one or two days before it begins, except a man who habitually fasts, then he may fast on that day.»** Narrated by al-Bukhari.

Fasting on the days of the two Eids, because of the proven report from Abu Saeed al-Khudri رضي الله عنه, who said: The Prophet ﷺ forbade fasting of the day of al-Fitr [Eid al-Fitr] and of an-Nahr [sacrifice, i.e., Eid al-Adha]. Narrated by al-Bukhari.

Fasting on the days of at-tashreeq, which are the three days following the Day of Sacrifice, namely the eleventh, twelfth and thirteenth [of Dhu'l-Hijjah], because the Prophet ﷺ said: **«The days of at-tashreeq are days of eating, drinking and remembering Allah ﷻ.»** Narrated by Muslim.

But it is permissible to fast on these days for the pilgrim who is doing tamattu or qiran, if they did not bring a sacrificial animal with them, because of the hadith of Aisha and Ibn Umar رضي الله عنه, who said: No concession was granted allowing anyone to fast on the days of at-tashreeq, except for the one who cannot afford a sacrificial animal. Narrated by al-Bukhari.



Activities

Answer the following:

- 1 What is the ruling on fasting the days of Eid for one who is not at Hajj, with evidence?
- 2 It is widely believed that the one who breaks a voluntary fast by mistake has invalidated his fast. Respond to that.

Put a checkmark (✓) or a cross mark (X), and underline what is incorrect, if applicable, in the following:

- 3 It is not stipulated that when making up missed fasts one must do them consecutively; rather it is valid to do them separately. ()
- 4 It is permissible to fast on the days of at-tashreeq, which are the three days after the Day of Sacrifice. ()
- 5 It is obligatory to fast nine days of Dhu'l-Hijjah, starting on the first day of the month, and ending on the ninth day. ()
- 6 It is disliked (makruh) to single out a Saturday for fasting, but if you add another day to it, there is nothing wrong with that. ()
- 7 It is permissible to fast on the days of at-tashreeq for the pilgrim who is doing tamattu or qiran, if he cannot afford a sacrificial animal. ()

2

Itikaf



> In this unit we will study

Itikaf

Its conditions

What is mustahabb (recommended) in itikaf

What invalidates itikaf

The last ten nights of Ramadan

Laylat al-Qadr

Itikaf



In linguistic terms, itikaf means committing oneself to something and devoting oneself to it, whether it is a righteous deed or otherwise. An example of that is seen in the verse in which Allah ﷻ says: *{When he [Ibraaheem] said to his father and his people, "What are these statues to which you are devoted [antum laha 'aakifoon]?"}* [al-Anbiya 21:52].

In Islamic terminology, itikaf means staying in the mosque to worship Allah ﷻ in a specific manner.

Itikaf is prescribed:

Itikaf is prescribed according to the Quran and Sunnah, and according to scholarly consensus. In the Quran, Allah ﷻ says: *{And do not have relations with them as long as you are staying for worship [aakifoon] in the mosques}* [al-Baqarah 2:187] *{Purify My House for those who perform Tawaf and those who are staying [there] for worship [wa'l-'aakifeen] and those who bow and prostrate [in prayer]}* [al-Baqarah 2:125].

The latter verse indicates that it was prescribed even among the nations who came before us.

In the Sunnah, there is a great deal of evidence for it, such as the hadith of Aisha رضى الله عنها, who said: The Prophet ﷺ used to observe itikaf during the last ten days of Ramadan, until Allah took his soul in death. Narrated by al-Bukhari and Muslim.

Many of the scholars narrated that there is consensus that itikaf is prescribed, such as Ibn al-Mundhir in his book al-Ijma, and Ibn Hazm in Maratib al-Ijma.

Ruling on itikaf: itikaf is a confirmed Sunnah (Sunnah muakkadah) of the Prophet ﷺ. The evidence for that is the hadith of Aisha رضى الله عنها quoted above.

Itikaf becomes obligatory if one makes a vow to do it.



There is no sound report from the Messenger of Allah ﷺ of any words that he said concerning the virtue of itikaf; rather it is something that he did regularly.

It is not appropriate to abandon itikaf. Az-Zuhri said: It is very strange that the Muslims have abandoned itikaf even though the Prophet ﷺ never abandoned this practice from the time he came to Madinah until Allah ﷻ took his soul in death.

Conditions: the following conditions are stipulated for itikaf:

- ➔ Forming the intention (niyyah).
- ➔ Being in a state of purity, free of major impurity.
- ➔ It should be done in a mosque in which prayers are held in congregation.

Itikaf is valid on the part of a minor if he has reached the age of discernment, and on the part of a female so long as she is not menstruating or bleeding following childbirth.

The wives of the Prophet ﷺ observed itikaf, such as Aisha, Umm Salamah and Hafsaah رضي الله عنهن.

Fasting is not a condition for observing itikaf, because of the report narrated from Ibn Umar رضي الله عنهما, according to which Umar رضي الله عنه said: O Messenger of Allah, I made a vow during the Jahiliyyah to observe itikaf for one night in al-Masjid al-Haram. He said: «**Fulfil your vow.**» Narrated by al-Bukhari and Muslim. And it is known that there is no fasting at night.

Duration of itikaf:

Itikaf is valid whether it is observed for a lengthy period or a short period, because there is no report to suggest that there is a specific length of time for that.

Time of itikaf:

The best time for itikaf is the last ten days of Ramadan, because of the report narrated from Aisha رضي الله عنها, according to which the Prophet ﷺ used to observe itikaf during the last ten days of Ramadan, until Allah took his soul in death. Narrated by al-Bukhari and Muslim.

With regard to its time during the last ten days of Ramadan:

The one who wants to observe itikaf for the last ten days should enter the mosque before sunset on the twentieth of Ramadan, so that it may truly be said that he spent the first of the last ten nights in the mosque.

With regard to the report narrated in as-Sahihayn from Aisha رضي الله عنها – according to which, when the Prophet ﷺ wanted to spend the last ten days in itikaf, he would pray Fajr, then he would enter his mutakaf – this refers to the special place that he had prepared for itikaf inside the mosque.

➔ **The time for itikaf ends with sunset on the last day of Ramadan.**

Things that are mustahabb (encouraged) when in itikaf:

It is mustahabb for the one who is observing itikaf to spend his time in worship, doing a great deal of prayer, remembering Allah (dhikr), supplication (dua), reading Quran, repenting, praying for forgiveness, and other acts of worship that will bring him closer to Allah ﷻ.



What is permissible for the one who is observing itikaf:

- Going out of the mosque when necessary, to eat and drink, if he does not have someone to bring food and drink to him.
- Going out to relieve himself, and to do wudu and ghusl when needed.
- Meeting with his wife and relatives, and he may come out of the place where he is observing itikaf to bid them farewell, because of the report narrated from Aisha رضي الله عنها, who said: The Messenger of Allah ﷺ was observing itikaf, and I came to him at night and spoke to him, then I got up to leave, and he got up and walked me back to my house. Narrated by al-Bukhari and Muslim.
- Combing his hair, shaving his head, clipping his nails, cleaning his body, putting on his best clothes, and putting on perfume.
- Aisha رضي الله عنها said: The Messenger of Allah ﷺ would observe itikaf in the mosque, and he would put his head through a gap in the wall of the apartment, and I would wash his head – according to one version, then I would comb his hair, whilst I was menstruating.
- Eating, drinking and sleeping in the mosque, whilst taking care to keep the mosque clean and look after it.

Things that invalidate itikaf:

- 1 Going out of the mosque, except for essential reasons, because going out is contrary to staying in the place where one is observing itikaf, which is an essential part of itikaf. Moreover, Aisha رضي الله عنها said: [The Prophet صلى الله عليه وسلم] did not enter the house except to relieve himself, when he was observing itikaf. Narrated by al-Bukhari and Muslim.

Al-Khattabi said: This highlights the fact that the one who is observing itikaf should not enter his house except to defecate or urinate, and if he enters his house for any other purpose, such as eating or drinking, then his itikaf is rendered invalid.

- 2 Having intercourse, even outside the mosque, because Allah عز وجل says: *{And do not have relations with them as long as you are staying for worship in the mosques}* [al-Baqarah 2:187].

Ibn al-Mundhir said: The scholars are unanimously agreed that whoever has intercourse with his wife deliberately, whilst he is in itikaf, his itikaf is rendered invalid. An analogy may be drawn with that for masturbation and the like.

But if he thinks and emits madhiy or has a wet dream, his itikaf is not invalidated by that.

- 3 Menses and nifas, because it is not permissible for a woman who is menstruating or bleeding following childbirth to remain in the mosque.

- 4 Apostasy, because it is contrary to worship, and because Allah عز وجل says: *{if you should associate [anything] with Allah, your deeds would surely become worthless}* [az-Zumar 39:65].

Itikaf of a woman who is suffering from istihadah (irregular bleeding):

The correct view that it is permissible for a woman who is suffering from istihadah to observe itikaf, because of the proven report from Aisha رضي الله عنها that was narrated by al-Bukhari, according to which she said: One of the wives of the Messenger of Allah صلى الله عليه وسلم, who was suffering from istihadah, observed itikaf with him. She would see yellowish and brownish discharge, and sometimes she would place a bowl beneath her whilst she was praying.



Related issues

- > The word masjid (mosque) includes the mosque and any extension added to it, its roof, the yard around it, its basement and any structure connected to it.
- > If a man observes itikaf in a mosque in which Jumuah prayer is not held, and during his itikaf the day of Jumuah (Friday) comes, he must go out to attend Jumuah, if he is one of those for whom Jumuah is obligatory. This is a matter on which the leading scholars are unanimously agreed.



The last ten nights of Ramadan and Laylat al-Qadr:

The Prophet ﷺ would strive hard during the last ten nights of Ramadan as he did not strive at any other time. It was narrated from Aisha رضي الله عنها that he would observe itikaf during the last ten nights and seek Laylat al-Qadr. Narrated by al-Bukhari and Muslim.

In as-Sahihayn, it is narrated from Aisha رضي الله عنها that when the last ten nights of Ramadan came, the Prophet ﷺ would stay up at night, wake his family up and tighten his izar (waist wrapper).

The phrase “tighten his izar (waist wrapper)” is a metaphor for preparing oneself to worship and strive hard in it, more than usual.

The phrase “stay up at night” means praying qiyam and doing other acts of worship.

It was also narrated that Aisha رضي الله عنها said: I do not know that the Messenger of Allah ﷺ recited the entire Quran in one night or **stayed up and prayed for an entire night until dawn**, or ever fasted an entire month except Ramadan. Narrated by an-Nasai.



Laylat al-Qadr:

During the last ten nights of Ramadan, there is Laylat al-Qadr (the Night of Decree), and what a great night it is, for it has unique characteristics, including the following:

1 The Quran was sent down during it, because Allah ﷻ says: *{Indeed, We sent the Quran down during the Night of Decree}* [al-Qadr 97:1].

2 Allah ﷻ describes it as being better than a thousand months: *{The Night of Decree is better than a thousand months}* [al-Qadr 97:3].

That is, in terms of worship and praying qiyam, it is better than the worship of a thousand months.

3 Allah ﷻ describes it as being blessed, as He says: *{Indeed, We sent it down during a blessed night}* [ad-Dukhan 44:3].

4 The angels come down a great deal during this night, because it is so blessed. Allah ﷻ says: *{On that night the angels and the Spirit [Jibreel] descend by their Lord's leave with all decrees}* [al-Qadr 97:4].

The Spirit is Jibreel عليه السلام. He is singled out for mention because of his honourable status.

5 Allah ﷻ describes it as *{[It is a night of] peace and blessing until the break of dawn}* [al-Qadr 97:5]. In other words, it is safe, for the Shaytan is not able to do any evil or cause any harm on that night, and many are saved from punishment because of what they do on that night of worshipping Allah ﷻ.

6 *{On that night, all matters are decided on the basis of wisdom}* [ad-Dukhan 44:4]. That is, decrees are transmitted from al-Lawh al-Mahfuz to the scribes concerning what will happen in the coming year of lifespans coming to an end, provision, and what will happen until the end of the year. Everything is decided and cannot be changed.

7 The one who spends that night in prayer out of faith and in hope of reward will be forgiven his previous sins. It was narrated from Abu Hurayrah رضي الله عنه that the Prophet ﷺ said: **«Whoever spends Laylat al-Qadr in prayer out of faith and in hope of reward, his previous sins will be forgiven him.»** Narrated by al-Bukhari and Muslim.

Seeking Laylat al-Qadr:

It is encouraged (mustahabb) to seek Laylat al-Qadr in the last ten nights of Ramadan, because the Prophet ﷺ said: **«Seek Laylat al-Qadr in the last ten nights of Ramadan.»** Narrated by al-Bukhari and Muslim.

It is more likely to be one of the odd-numbered nights, because the Prophet ﷺ said: **«Seek Laylat al-Qadr in the odd-numbered nights among the last ten nights.»** Narrated by al-Bukhari.

And it is more likely to be in the last seven nights, because of the hadith of Ibn Umar رضي الله عنه, according to which some of the Companions of the Prophet ﷺ were shown Laylat al-Qadr in a dream, among the last seven nights, and the Messenger of Allah ﷺ said: **«I think your dreams all indicate the same thing, that it is one of the last seven nights of Ramadan, so whoever wants to seek it, let him seek it in the last seven nights.»** Narrated by al-Bukhari and Muslim.

The correct view is that Laylat al-Qadr moves among the odd-numbered nights among the last ten. Allah عز وجل has only concealed this night so that people will strive to seek it and will strive hard in worship, as He has also concealed the hour on Friday when supplications are answered, and so on.

Supplication (dua) for Laylat al-Qadr:

It was narrated that Aisha رضي الله عنها said: I said: O Messenger of Allah, if I think it is Laylat al-Qadr, what do you think I should say? He said: **«Say: Allahumma innaka afuwwun tuhibb al-afwa, fa'fu anni (O Allah, You are forgiving, You love forgiveness, so forgive me).»** Narrated by Ahmad, at-Tirmidhi and Ibn Majah with a sahih isnad.



Signs of Laylat al-Qadr:

1. Muslim narrated from Ubay ibn Ka'b رضي الله عنه that the Prophet ﷺ stated that one of its signs is that the sun rises on the following morning with no visible rays.
2. It is proven in the hadith of Ibn Abbas رضي الله عنه narrated by Ibn Khuzaymah with a sahih isnad that the Prophet ﷺ said: **«Laylat al-Qadr is a mild night, neither hot nor cold, on the following morning of which the sun rises red and weak.»**
3. Ahmad and at-Tabarani narrated with a hasan isnad from Wathilah ibn al-Asqa رضي الله عنه that the Prophet ﷺ said: **«Laylat al-Qadr is a bright night, neither hot nor cold, on which no meteors appear.»**



Activities

Answer the following:

- 1 Give definitions of itikaf both in linguistic terms and in Islamic terminology, and quote the evidence for its being prescribed.

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- 2 Speak briefly about the time for itikaf. Is fasting a condition for observing itikaf? Give evidence for what you say.

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- 3 Someone who was observing itikaf went out to attend his brother's funeral. What is the ruling on his itikaf? Give evidence.

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- 4 What is prescribed for the Muslim to do during the last ten days of Ramadan? What is the time to enter the mosque for the one who wants to do itikaf? Mention the evidence for that.

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3

The Book of Hajj and Umrah





In this unit we will study

Definition of Hajj

Conditions of Hajj being obligatory

The miqats of Hajj

Types of Hajj

Pillars or essential parts of Hajj

Compensation (fidyah) for doing things that are prohibited whilst in ihram

Things that are permissible for the muhrim (pilgrim in ihram) to do

Obligatory parts of Hajj

Issues connected to the stoning of the Jamarat

Definition of Hajj:

In linguistic terms, hajj means aiming for or heading towards a place.

In Islamic terminology, Hajj refers to worshipping Allah ﷻ by heading towards the Sacred House and the holy places, at a specific time, in a specific manner.

Hajj was enjoined at the end of 9 AH, in the verse in which Allah ﷻ says: *{And [due] to Allah from the people is a pilgrimage to the House – for whoever is able to find thereto a way}* [Aal Imran 3:97].

This verse was revealed during the Year of Delegations, at the end of 9 AH. This is the view of most of the scholars.

Ruling on Hajj:

Hajj is obligatory once in a lifetime, based on the evidence of the Quran and Sunnah, and scholarly consensus.

- » Allah ﷻ says: *{And [due] to Allah from the people is a pilgrimage to the House – for whoever is able to find thereto a way}* [Aal Imran 3:97].
- » It was narrated that Ibn Umar رضي الله عنه said: The Messenger of Allah ﷺ said: «Islam is built on five [pillars]: the testimony that there is no god worthy of worship except Allah and that Muhammad is the Messenger of Allah, establishing prayer, giving zakat, Hajj, and fasting Ramadan.» Agreed upon.
- » The evidence for it being obligatory once in a lifetime is the words of the Prophet ﷺ: «O people, Allah has enjoined Hajj upon you, so do Hajj.» A man said: Is it every year, O Messenger of Allah? He remained silent until the man said it three times, then the Prophet ﷺ said: «If I say yes, it will become obligatory and you would not be able to do it.» Narrated by Muslim.
- » With regard to scholarly consensus, the Muslims are unanimously agreed that it is one of the (five) pillars of Islam.

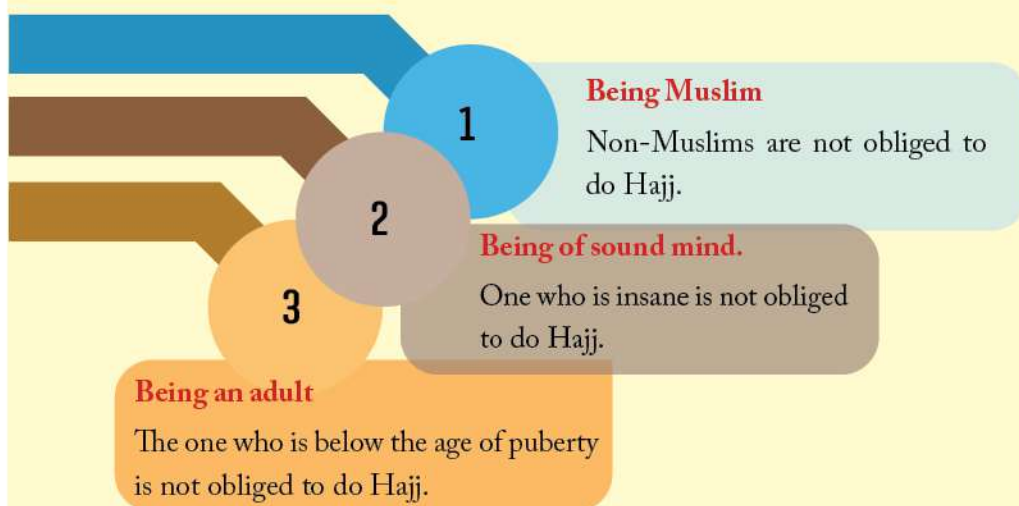
The virtue of Hajj:

Several hadiths have been narrated about the virtue of Hajj, including the hadith narrated from Abu Hurayrah رضي الله عنه, who said: I heard the Messenger of Allah ﷺ say: «Whoever performs Hajj and does not commit any lewdness or commit any evil will go back (free of) sin as on the day his mother bore him.» Agreed upon.

And it was narrated from him رضي الله عنه that the Messenger of Allah ﷺ said: «An accepted Hajj brings no less a reward than Paradise.» Agreed upon.

It is not appropriate to dispute, argue, or speak or do evil during the Hajj, because Allah ﷻ says: *{The Hajj takes place in the well-known months. Whoever undertakes to perform Hajj during them, there should be no lewdness, nor wrongdoing, nor quarrelling during the Hajj}* [al-Baqarah 2:197].

Conditions of Hajj being obligatory:



The evidence for that is the hadith of Aisha رضي الله عنها, from the Prophet صلى الله عليه وسلم, who said: **«The Pen has been lifted from three: from the sleeper until he awakes; from the minor until he grows up; and from the one who is insane until he comes back to his senses.»**

Narrated by Ahmad, Abu Dawud, an-Nasai and Ibn Majah; classed as sahih by al-Albani.

If a child does Hajj, his Hajj is valid, but it does not count as the obligatory Hajj.



The evidence for that is the hadith of Ibn Abbas رضي الله عنه, according to which the Prophet صلى الله عليه وسلم met some riders in ar-Rawha. He asked them: **«Who are you?»** They said: We are Muslims; who are you? He said: **«The Messenger of Allah.»** A woman lifted up a boy and said: “Is there Hajj for this one? He said: **«Yes, and you will be rewarded.»**

Narrated by Muslim.



It was narrated that Ibn Abbas رضي الله عنه said: The Prophet صلى الله عليه وسلم said: «**Any child who does Hajj then reaches puberty, must do Hajj again.**» Narrated by al-Bayhaqi; classed as sahih by al-Albani.



If a person can afford it but is not physically able, then he should appoint someone to do Hajj on his behalf, because of the hadith of Ibn Abbas رضي الله عنه, according to which a woman from [the tribe of] Khath'am said: O Messenger of Allah, my father is very old, and Allah's command to people to do Hajj has come when he cannot sit firmly on his camel's back. The Prophet صلى الله عليه وسلم said: «**Then do Hajj on his behalf.**» Narrated by Muslim.

If a person is physically able to do it but cannot afford it, and he does not have the means to reach Makkah, then Hajj is not obligatory for him.

» » There is an extra condition in the case of a woman, which is that she must be accompanied by a mahram, whether that is her husband or someone else. If she does not have a mahram, then she is not regarded as being able to do Hajj. It was narrated that Ibn Abbas رضي الله عنه said: I heard the Messenger of Allah صلى الله عليه وسلم say: «**No man should be alone with a woman unless she has a mahram with her, and no woman should travel except with a mahram.**» A man stood up and said: O Messenger of Allah, my wife has set out for Hajj and I have enlisted in the campaign of such and such. He said: «**Go and do Hajj with your wife.**» Agreed upon.



The miqats of Hajj:

In linguistic terms, the word **miqat** (pl. mawaqeeṭ) refers to a limit or boundary. The word may be used with regard to time or place.

1. Miqats of time:

The time for Hajj starts at the beginning of the month of Shawwal and lasts until the tenth of Dhu'l-Hijjah. Allah ﷻ says: *{The Hajj takes place in the well-known months}* [al-Baqarah 2:197]. Ibn Umar رضي الله عنه said: The months of Hajj are Shawwal, Dhu'l-Qadah and the first ten days of Dhu'l-Hijjah.

2. Miqats of place:

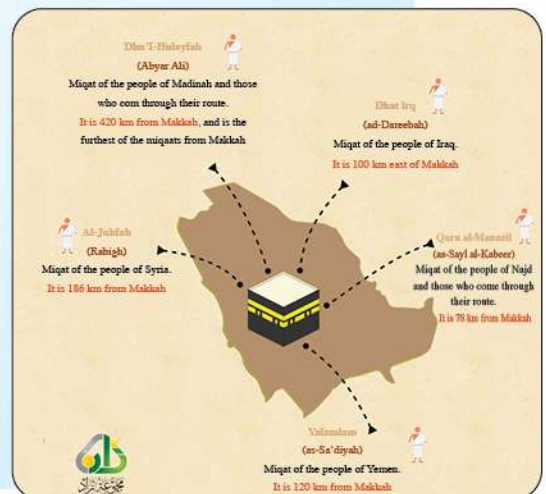
What is meant by the miqats is the boundaries that the pilgrim who is coming to do Hajj or Umrah should not pass without entering ihram. There are five miqats, as established by the Prophet ﷺ.

Ibn Abbas رضي الله عنه said: The Prophet ﷺ defined the miqat of **the people of Madinah as Dhu'l-Hulayfah**; that of **the people of Sham (Syria) as al-Juhfah**; that of **the people of Najd as Qarn al-Manazil**; and that of **the people of Yemen as Yalamlam**. And he said: "And these miqats are for the people at those very places, and besides them, for those who come through those places with the intention of performing Hajj and Umrah. As for those who are living within these boundaries, they can enter ihram from the place they set out from, and the people of Makkah can enter ihram from Makkah." Agreed upon.

Umar ibn al-Khattab رضي الله عنه defined the miqat for **the people of Iraq as Dhat Irq**. Narrated by al-Bukhari.

The miqats in detail:

- 1 **Dhu'l-Hulayfah:** this is the miqat of the people of Madinah and those who pass through it. It is approximately 420 km from Makkah.
- 2 **al-Juhfah:** this is the miqat of the people of Syria, Turkiye, Egypt and Morocco, and whoever comes in line with it or passes through it. It is a village near Rabigh, approximately 186 km from Makkah. Nowadays people enter ihram from Rabigh.



3 Yalamlam: this is the miqat of the people of Yemen and whoever comes in line with it or passes through it. It is a valley approximately 120 km from Makkah. It is now called **as-Sa'diyah**.

4 Qarn al-Manazil: this is the miqat of the people of Najd and at-Taif, and whoever comes in line with it or passes through it. It is now known as **as-Sayl al-Kabeer**. It is approximately 75 km from Makkah.

5 Dhat Irq: this is the miqat for the people of Iraq and whoever comes in line with it or passes through it. It is a wadi that is now known as **ad-Dareebah**. It is approximately 100 km from Makkah.

» » **It is makruh to enter ihram before reaching these miqats.**



Issues related to the miqats:

1 What is the ruling on one who passes the miqat without entering ihram, when he is intending to do Hajj or umrah?

The one who passes the miqat without entering ihram must go back to it if possible. If he is not able to go back, then he must pay compensation (fidyah), which is a sheep to be slaughtered in Makkah and its meat distributed among the poor of the Haram.

2 For those who live within the boundary of the miqats, they should enter ihram for Hajj from their homes, because the Prophet ﷺ said: «...and whoever is living within these boundaries can enter ihram from the place he starts, and the people of Makkah can enter ihram from Makkah.» Agreed upon.

3 If someone passes a miqat that is not the miqat of his country, it is valid for him to enter ihram from it, and he does not have to go back and pass through his own miqat, because the Prophet ﷺ said: «And these miqats are for the people of these places, and besides them for those who come to them [the miqats].»

4 What is prescribed for the one who is travelling for Hajj or Umrah by air is to get ready before he boards the plane, then when he is approaching the miqat, he should change into his izar (lower garment) and rida (upper garment), or he can put them on at home before he sets out. Then when he is in line with the miqat or close to it, he should recite the talbiyah for whatever he intends to do, either Hajj or Umrah.



5

For the one who travels to Makkah not intending to do Hajj or Umrah – rather he is going there for business and the like – he does not have to enter ihram, because the Prophet ﷺ said: **«And these miqats are for the people of these places, and besides them for those who come to them [the miqats] with the intention of performing Hajj and Umrah.»**

When the Prophet ﷺ entered Makkah in the year of the conquest, he did not enter it in ihram; rather he entered it with a helmet on his head, because at that time he was not intending to do Hajj or Umrah, for he had come with the sole intention of conquering it and eliminating whatever there was in it of shirk.

Types of Hajj

It is permissible to enter ihram for any of these three types of Hajj, because Aisha رضي الله عنها said: We set out with the Messenger of Allah ﷺ, and some of us entered ihram for Hajj, some of us entered ihram for Umrah, and some of us entered ihram for both Hajj and Umrah. Agreed upon.

One of the ways in which Allah has made things easy for His slaves is that He has prescribed three types of the obligation of Hajj, out of kindness towards them and so as to ward off hardship from them. They are the three types of Hajj: tamattu, qiran and ifrad.

➡ ➡ **The best of these types is tamattu**, because the Prophet ﷺ instructed and urged his Companions رضي الله عنهم to do it, and he ﷺ said: **«If I have the opportunity to do Hajj again, I would not bring the hadiy (sacrificial animal) with me, and I would exit ihram [between umrah and Hajj].»** Nothing prevented him from exiting ihram except the fact that he had brought the sacrificial animal with him.

Moreover, tamattu is easier for the pilgrim, as he will have a break from the restrictions of ihram by exiting ihram between Umrah and Hajj; this is in accordance with the words of Allah عز وجل: *{Allah intends for you ease and does not intend for you hardship}* [al-Baqarah 2:185].

Description of tamattu: the pilgrim enters ihram for Umrah on its own during the months of Hajj, then finishes it and exits ihram. Then he enters ihram for Hajj in the same year.

Description of qiran: the pilgrim enters ihram for Umrah and Hajj together, or he enters ihram for Umrah first, then he adds Hajj to it before starting the tawaf of Umrah, so when he reaches Makkah, he does tawaf al-qudoom (the tawaf of arrival) and does sa'i between as-Safa and al-Marwah – one sa'i for both Umrah and Hajj. Then he remains in ihram until he exits it on the day of Eid.

It is permissible for him to delay sa'i and not do it straight after tawaf al-qudoom, and do it after tawaf al-ifadah instead.

Description of ifrad: the pilgrim enters ihram for Hajj on its own, then when he reaches Makkah, he does tawaf al-qudoom (the tawaf of arrival) and sa'i for Hajj, then he remains in ihram until he exits it on the day of Eid. And it is permissible for him to delay sa'i until after the tawaf of Hajj, as in the case of qiran.

Thus it becomes clear that the actions involved in ifrad and qiran are the same, except that the one who does qiran must offer a sacrifice in order to attain the virtue of having done the two rituals [Umrah and Hajj], unlike the one who does ifrad.



Activities

Answer the following:

- 1 Write briefly about Hajj, covering the following topics: its definition – the evidence for it being prescribed – its conditions – the time when it is to be done.
- 2 List the miqats for Hajj and draw a map of them; give the names by which they are known in modern times.
- 3 List the types of Hajj in brief. For which of them did the Messenger of Allah ﷺ enter ihram? Why is tamattu the best type of Hajj?

Complete the following:

- 4 is the miqat for the people of Najd and at-Taif, and whoever comes in line with it or passes through it.
- 5 means entering ihram for Umrah and Hajj together, or entering ihram for Umrah first, then adding Hajj to it.
- 6 In the case of a woman, there is an additional condition of Hajj being obligatory that is not required of men; it is

Essential parts of Hajj:

Hajj has four essential parts, without which it is not complete. They are: entering ihram, standing in Arafah, tawaf al-ifadah, and sa'i between as-Safa and al-Marwah.

Whoever omits any of these essential parts has not completed his Hajj, until he does it.

The first essential part of Hajj:

entering ihram. This means forming the intention to start the rituals. Whoever omits to enter ihram cannot have started Hajj, because the Prophet ﷺ said: **«Indeed actions are but by intentions.»** Agreed upon.

- Entering ihram means forming the intention to start the rituals; it does not mean putting on the ihram garments, as many people think.

Things that are prohibited whilst in ihram:

What is meant is things that the Muslim is forbidden to do because of ihram. They are:

1 Wearing sewn garments.

That is because of the proven report from Abdullah ibn Umar رضي الله عنه, according to which a man said: O Messenger of Allah, what garments may the muhrim (pilgrim in ihram) wear? The Messenger of Allah ﷺ said: **«He should not wear a chemise, or a turban, or pants, or a burnoose, or khuffs [footwear that comes above the ankles], except one who cannot find sandals to wear, in which case he may wear khuffs...»** Agreed upon.



What is meant by sewn garments is any garment that is shaped to fit any part of the body, such as a chemise (or thawb), pants and caps. It does not refer to anything that has stitches in it, as some people think.



A concession is granted to the one who cannot find anything to wear except pants and khuffs, because of the hadith of Ibn Abbas رضي الله عنه, who said: I heard the Messenger of Allah ﷺ addressing the people in Arafat, saying: «**Whoever cannot find sandals, let him wear khuffs, and whoever cannot find an izar, let him wear pants.**» Agreed upon.



2

Wearing a niqab (face veil) or gloves, for women.

That is because of the report narrated from Ibn Umar رضي الله عنه, according to which the Prophet ﷺ said: «**The woman in ihram should not cover her face or wear gloves.**» Narrated by al-Bukhari.

But it is permissible for her to cover her hands with her garments or abayah, and the like, instead of gloves. It is also permissible for a woman to cover her face with a khimar (head cover) and the like when men pass by her, because of the hadith of Aisha رضي الله عنها who said: "Men riding mounts would pass by us, when we were with the Messenger of Allah ﷺ in ihram. When they drew level with us, one of us would let down her jilbab from the top of her head over her face, and when they had passed by us, we would uncover our faces again. Narrated by Ahmad and Abu Dawud; classed as hasan by al-Albani.



3

Covering the head with a turban and the like, for men. That is because the Prophet ﷺ said, in a hadith narrated by Ibn Umar رضي الله عنه: «**He should not wear a chemise or a turban.**» Agreed upon.



But it is permissible for a man to seek shade in a tent or under an umbrella and the like, because the Prophet ﷺ issued instructions that a tent of camel hair be set up for him in Namirah.

Narrated by Muslim.



4

Putting perfume on one's body or ihram garment. That is because the Prophet ﷺ said, in a hadith narrated by Ibn Umar رضي الله عنه: «...and do not wear any garment that has been perfumed with saffron or wars [a type of herb].» Agreed upon.

If there is any smell of perfume left after entering ihram, that does not matter.



5

Removing hair by shaving or cutting, or clipping the nails, because Allah ﷻ says: *{And do not shave your heads until the sacrificial animal has reached its place of slaughter}* [al-Baqarah 2:196].



Ibn Qudamah رحمته الله said: The scholars are unanimously agreed that the pilgrim in ihram is forbidden to cut his nails.



But it is permissible to remove hair for one who will be troubled by leaving it, but he has to offer a fidyah (compensation) for it. That will be discussed in more detail below.



6

Intercourse in the vagina. This invalidates Hajj if it is done before the first stage of exiting ihram, even if it is done after the standing in Arafah, but the one who does that must still complete his Hajj, even if it has been rendered invalid. He must also offer a fidyah (compensation) by sacrificing a camel, and he must make up his Hajj in the following year.

7

Intimacy that is less than intercourse, which includes kissing, touching and looking with desire. But that does not invalidate Hajj.

8

Killing game animals and hunting, because Allah ﷻ says: *{but forbidden to you is game from the land as long as you are in the state of ihram}* [al-Ma'idah 5:96].



It is permissible to kill the vermin that the Prophet ﷺ instructed are to be killed both outside and inside the Haram zone, by one who is in ihram or otherwise. They are: **crows, rats, scorpions, kites [a kind of bird], snakes and vicious dogs [or other vicious carnivores]**, as was narrated in as-Sahihayn.



9

Proposing marriage and doing a marriage contract, for the pilgrim in ihram, whether he does that for himself or for someone else, because of the report narrated from Uthman رضي الله عنه, according to which the Prophet صلى الله عليه وسلم said: **«The pilgrim in ihram should not get married, no one should give him his daughter in marriage, and he should not propose marriage.»** Narrated by Muslim.

The scholars narrated that there is consensus that if a pilgrim in ihram does a marriage contract, it is invalid, whether he does it for himself or for someone else.

Fidyah (compensation) for doing actions that are forbidden when in ihram:

With regard to the fidyah, the actions that are forbidden when in ihram may be divided into four categories:

- 1 That for which no fidyah is required, which is doing a marriage contract.
- 2 That for which the fidyah is severe, which is having intercourse during Hajj before the first stage of exiting ihram, for which the fidyah is to sacrifice a camel. If intercourse takes place after the first stage of exiting ihram, the fidyah is the same as that required in the case of one who has an ailment in his head for which he has to shave his head. The same ruling applies to the woman as to the man, unless she was forced to do that.
- 3 That for which the fidyah is a penalty or other option, which is killing game animals, because Allah عز وجل says: *{O you who have believed, do not kill game while you are in the state of ihram. And whoever of you kills it intentionally - the penalty is an equivalent from sacrificial animals to what he killed, as judged by two just men among you, as an offering [to Allah] delivered to the Ka'bah, or an expiation: the feeding of needy people or the equivalent of that in fasting}* [al-Ma'idah 5:95].
- 4 That for which the the fidyah is for an ailment, which refers to all other infractions. In this case the fidyah is to feed six poor persons, giving each one half a saa' of food, or fasting for three days, or sacrificing a sheep, to be slaughtered and its meat distributed to the poor, because Allah عز وجل says: *{And if any of you is ill, or has an ailment of the scalp [necessitating shaving the head whilst still in ihram], he must compensate by either fasting, giving charity, or offering a sacrifice}* [al-Baqarah 2:196].

It was narrated from Ka'b ibn Ujrah رضي الله عنه that he came to the Prophet صلى الله عليه وسلم with lice falling onto his face. The Prophet صلى الله عليه وسلم said: **«Are these bugs bothering you?»** He said: Yes. He said: **«Then shave your head, and give three saa's of food to six poor persons, or fast for three days, or sacrifice a sheep.»** Agreed upon.

- 
- ➔ Whoever does any of the things that are prohibited whilst in ihram by mistake or out of ignorance or because he is forced to do it, does not have to offer any compensation, because Allah ﷻ says: *{And there is no blame upon you for that in which you have erred but [only for] what your hearts intended}* [al-Ahzab 33:5].
 - ➔ Whoever does that deliberately because of a need, such as if he needs to wear a thawb to ward off the cold, or he needs to shave his head because of sickness, or to cut his hair or his nails, then he must offer the fidyah for an ailment, in the manner described above, and there is no sin on him.
 - ➔ But if he does it deliberately when there is no need for it, then he does incur sin, and he must offer the fidyah and repent.

Things that are permissible for the pilgrim in ihram to do:

- ➔ Wearing footwear, such as sandals and the like, even if there is stitching on them.
- ➔ Tying his izar around himself with a string, so as to cover his awrah, keep his money with him, and so on.
- ➔ Wearing a wristwatch, glasses, ring, hearing aids and the like.
- ➔ Washing the ihram garments if they get dirty, and changing them when he needs to.
- ➔ Washing himself with water, washing his head and body.





Activities

Answer the following:

- 1 List the things that are forbidden when in ihram, explaining what is meant by sewn garments [makheet], and researching the history of this word.

.....

- 2 List the types of fidyah (compensation) for doing anything that is forbidden whilst in ihram, with evidence.

.....

- 3 List some of the things that are permissible for the pilgrim in ihram, with the reasons for them?

.....

Complete the following:

- 4 One of the things that are prohibited whilst in ihram for Hajj is that for which the fidyah is severe, which is having before the first stage of exiting ihram.

- 5 It is permissible to kill that the Prophet ﷺ instructed are to be killed both outside and inside the Haram zone, by one who is in ihram or otherwise. They are:,,,,, and

The second essential part of Hajj:

Standing in Arafah, because the Prophet ﷺ said: «**Hajj is Arafah.**» Narrated by Ahmad and the authors of

as-Sunan with a sahih isnad.

The time for standing in Arafah begins after the sun passes the meridian on the Day of Arafah, and lasts until the break of dawn on the Day of Sacrifice. Whoever is present in Arafah during this time, even for a single moment – and is qualified to stand there – his Hajj is valid, even if he only passed through, or was asleep, or was unconscious, or was unaware that it was Arafah, or was a woman who was menstruating, because of the hadith of Urwah ibn Mudarris رضي الله عنه, who said: I came to the Messenger of Allah ﷺ in al-Mawqif – meaning Jam‘ (Muzdalifah) – and said: I have come, O Messenger of Allah, from Jabal Tayy, exhausting my mount and myself, and by Allah, I did not leave any mountain but I stood on it; is my Hajj valid? The Messenger of Allah ﷺ said: “Whoever has caught up with this prayer with us, and came to Arafat before that, by night or by day, his Hajj is complete and he has completed his rites.” Narrated by Abu Dawud; classed as sahih by al-Albani.



The common practice of being eager to stand on the mountain which is called Jabal ar-Rahmah (the Mount of Mercy) is a mistake and is contrary to the Sunnah.



The place of standing: all of Arafah is a place of standing, except the valley of Uranah, because the Prophet ﷺ said: «**I am standing here, but all of Arafah is a place of standing.**» Narrated by Muslim.

It is Sunnah for the one who stands in Arafah to face towards the qiblah, reciting tahleel (Laa ilaaha illa Allah), takbeer (Allahu akbar) and the talbiyah sending blessings upon the Prophet ﷺ, and striving hard in supplication.

It is also encouraged (mustahabb) to remember Allah عز وجل a great deal and to offer a lot of supplication on the Day of Arafah, for it is a day when supplications are answered and abundant good is bestowed by the Most Generous.



If a person has stood in Arafah during the day, he must remain there until the sun sets, so that he will have stood there by both day and night. If he moves on before sunset, he must offer a compensatory sacrifice, but if he goes back before dawn, then he does not have to do anything. If he only stands there at night, he does not have to do anything either.

The third essential part of Hajj:

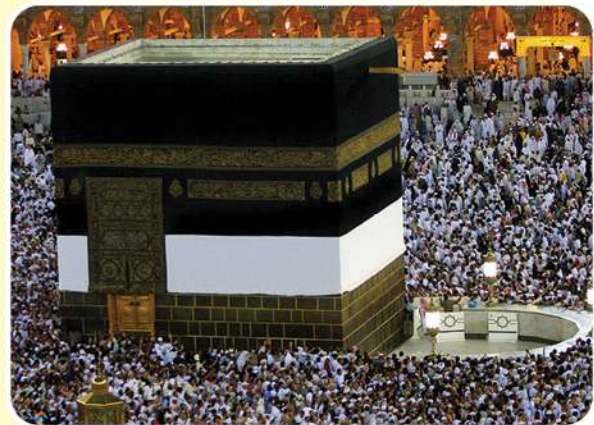
Tawaf al-ifadah, which is also known as tawaf az-zi-yarah, because Allah ﷻ says: *{and perform Tawaf around the ancient House}* [al-Hajj 22:29].

It was narrated that Aisha رضى الله عنها said: Safiyah bint Huyay رضى الله عنها got her menses after doing tawaf al-ifadah. I mentioned the fact that she had got her menses to the Messenger of Allah ﷺ, and the Messenger of Allah ﷺ said: «**Is she going to delay us?**» I said: O Messenger of Allah, she had already done tawaf **al-ifadah**. So the Messenger of Allah ﷺ said: «**Then she may move on.**» Agreed upon.



The beginning of the time for tawaf al-ifadah is when half of the night before the Day of Sacrifice has passed, and there is no end for its time, but the best is not to delay it until after the month of Dhu'l-Hijjah.

Doing it on the Day of Sacrifice is best, because Ibn Umar رضى الله عنهما said: The Messenger of Allah ﷺ did tawaf al-ifadah on the Day of Sacrifice. Agreed upon.



There are conditions for tawaf, which are as follows:

- 1 Being free of physical and metaphorical impurity (khabath and hadath, respectively).
- 2 Covering the awrah.
- 3 Circumambulation of the Kaaba must be done inside the mosque, even if it is at some distance from the Kaaba.
- 4 The Kaaba should be to the left of the one who is circumambulating it.
- 5 Tawaf consists of seven circuits.
- 6 The circuits should be done consecutively, with no unnecessary interruption, but they may be interrupted if the iqamah for prayer is given, or one needs to rest briefly, and the like.

The sunnahs of tawaf are:

- 1 **Raml (walking rapidly):** this is Sunnah for men who are able to do it, but not for women. It means walking rapidly with short steps. It is only Sunnah in tawaf al-qudoom, in the first three circuits.
- 2 **Idtiba:** this means uncovering the right shoulder. It is Sunnah in the tawaf of Umrah and tawaf al-qudoom only, and is to be done in all seven circuits.
- 3 **Kissing the Black Stone at the beginning of tawaf and in each circuit,** if possible, whilst saying takbeer. It is also Sunnah to touch ar-Rukn al-Yamani (the Yemeni Corner).
- 4 **Saying** “Bismillah wa Allahu akbar. Allahum-ma eemanan bika wa tasdeeqan bi kitabika wa wafa’an bi ahdika wa ittiba’an li sunnati nabiyyika sall Allahu alayhi wa sallam (In the name of Allah and Allah is most great. O Allah, out of faith in You, believing in Your Book, fulfilling the covenant with You, and following the Sunnah of Your Prophet ﷺ.”
That is to be said when starting the first circuit.
- 5 **Offering supplication during tawaf.** There is no limit and no specific wording for that; rather each person should offer whatever supplication Allah inspires him to offer. It is Sunnah to say between the Yemeni Corner and the Black Stone: *{Rabbana aatina fi'd-dunya hasanah wa fi'l-akhirati hasanah wa qinna 'adhaab an-naar (Our Lord, give us in this world [that which is] good and in the Hereafter [that which is] good and protect us from the punishment of the Fire)}* [al-Baqarah 2:201].
- 6 Praying two rakahs behind Maqam Ibrahim after completing tawaf, in which one should recite Surat al-Kafirun and Surat al-Ikhlash after al-Fatihah.
- 7 Returning to touch the Black Stone before proceeding to the Mas'a.



Shaykh al-Islam Ibn Taymiyyah said: With regard to the other sides and corners of the Kaaba, Maqam Ibrahim, and all other mosques on earth, their walls, the graves of the Prophets and the righteous, and the rock of Bayt al-Maqdis (Jerusalem), they are not to be touched (for the purpose of seeking barakah) or kissed, according to the consensus of the leading scholars, for kissing and touching are acts of veneration, and veneration is only for Allah عز وجل. Therefore it is not permissible to do that, except what He has permitted.



The fourth essential part of Hajj:

Sa'i between as-Safa and al-Marwah, because the Prophet ﷺ said: «**Do sa'i, for Allah has enjoined sa'i upon you.**» Narrated by Ahmad and Ibn Majah.

And Aisha رضي الله عنها said: "Allah will not regard as complete the Hajj of one who does not go between as-Safa and al-Marwah." Narrated by al-Bukhari and Muslim.



Conditions of sa'i:

- 1 The laps should be done consecutively; it does not matter if there is a brief interruption, especially if there is a need for that.
- 2 Completing the number, which is seven laps. If a lap is missing or incomplete, then it is not valid.
- 3 It should be done after the tawaf of a valid pilgrimage, whether the tawaf is obligatory or Sunnah.

Sunnahs of sa'i

- 1 Khabab, which is walking rapidly between the two green markers in the Mas'a. This is Sunnah for men who are able to do it, not for those who are weak and women.
- 2 Dhikr (remembering Allah) and dua (supplication) at both as-Safa and al-Marwah at the beginning of each of the seven laps. So the pilgrim should proclaim the oneness of Allah and magnify Him, saying: Allahu akbar, Allahu akbar, Allahu akbar. Laa ilaaha illa Allah wahdahu laa shareeka lah, lahu'l-mulk wa lahu'l-hamd, yuhyi wa yumeetu wa huwa ala kulli shay'in qadeer. Laa ilaaha illa Allah wahdahu laa shareeka lah. Anjaza wa'dah wa nasara abdah wa hazama al-ahzaba wahdah (Allah is most great, Allah is most great, Allah is most great. There is no god worthy of worship except Allah Alone, with no partner or associate; to Him belongs sovereignty and to Him be all praise; He grants life and causes death, and He has power over all things. There is no god worthy of worship except Allah Alone, with no partner or associate. He fulfilled His promise, granted victory to His slave and defeated the confederates alone). He should say that three times, and offer supplication in between.

Activities

Answer the following:

- 1 List the essential parts of Hajj in general terms, with evidence.
.....
- 2 What is required in the standing in Arafah, and what is the ruling on the one who does not stand there, not even for a moment?
.....
- 3 What is to be said to the one who is keen to stand on Jabal ar-Rahmah, and the one who recites a specific supplication for each circuit of tawaf?
.....
- 4 One of the essential parts of Hajj is sa'i. Mention the evidence for it, and the conditions thereof.
.....
- 5 Someone stood in Arafah during the day, then moved on in the afternoon. What must he do now?
.....

Put a checkmark (✓) or a cross mark (X), next to the following:

- 1 The standing in Arafah begins at dawn on the day of Arafah and lasts until sunset. ()
- 2 Idtiba (wearing the rida in such a way that the right shoulder is left uncovered) is done in tawaf al-qudoom, tawaf al-Umrah and tawaf al-ifadah. ()
- 3 One of the sunnahs in the first three circuits of tawaf al-qudoom is to walk rapidly with short steps (raml), for both men and women. ()
- 4 If someone starts to do sa'i and does not complete all the laps, his sa'i is valid. ()

4

Continuation of the Book of Hajj and Umrah



> In this unit we will study

Obligatory parts of Hajj and a description thereof

The ḥadiy (sacrificial animal) and types thereof

Rulings on missing the standing in Arāfah and being prevented from continuing

Umrah

Obligatory parts of Hajj:

There are seven obligatory parts; it is not permissible to omit them, so the one who omits any of them deliberately or by mistake must offer a compensatory sacrifice.

- 1 Entering ihram from the miqat.
- 2 Remaining standing in Arafah until sunset. Whoever stands there by night, even for a moment, it is acceptable.
- 3 Staying overnight in Muzdalifah, because Allah ﷻ says: *{But when you depart from Arafat, remember Allah at al-Mash'ar al-Haram}* [al-Baqarah 2:198]; and because the Prophet ﷺ did that.

And the Prophet ﷺ said: «Whoever attended this prayer of ours – meaning Fajr – and stood with us until we moved on – that is, from Muzdalifah – and stood before that in Arafah, by night or by day, his Hajj is complete and he has completed his rites.»

Narrated by Abu Dawud and at-Tirmidhi; classed as sahih by al-Albani.

- 4 Staying overnight in Mina during the nights of at-Tashreeq (the 11th, 12th and 13th of Dhu'l-Hijjah), because the Messenger ﷺ spent the night there, but he granted a concession to the camel herders to spend the night outside the boundary of Mina. Narrated by Ahmad and Abu Dawud; classed as sahih by al-Albani. The fact that the Prophet ﷺ granted them that concession indicates that it is one of the obligatory parts of Hajj.

If someone is unable to spend the night in Mina due to a valid excuse, he does not have to do anything, but he should stay overnight in the closest place to it, if possible; otherwise, he may stay wherever he wishes, because Allah ﷻ says: *{So fear Allah as much as you are able}* [at-Taghabun 64:16].

- 5 **Stoning the Jamaraat.** The time for stoning Jamrat al-Aqabah begins halfway through the night before the Day of Sacrifice, and the time for stoning the three Jamaraat on the days of at-Tashreeq begins when the sun passes the meridian.

The pilgrim should stone each Jamrah with seven pebbles, saying takbeer with each throw, starting with the first Jamrah, then the middle one, then Jamrat al-Aqabah.

If someone omits any of the obligatory parts of Hajj, deliberately or by mistake, he should compensate for that by offering a sacrifice. He should not eat from that sacrifice, or give any of it as a gift; rather he should only give it in charity.

Issues related to the stoning of the Jamaraat:

- ➔ Size of pebbles: larger than a chickpea and smaller than a hazelnut.
- ➔ The pebbles may be picked up from anywhere, in Muzdalifah, Mina or elsewhere. There is no evidence to stipulate that they must be picked up in Muzdalifah.
- ➔ It is not valid to throw lumps of cement or earth, because they cannot be called pebbles.
- ➔ It is not appropriate to throw shoes and the like at the Jamaraat, or to hurl insults and curses.
- ➔ What is required is to make sure that the pebbles fall into the basin around the Jamrah; it is not stipulated that they should actually hit the Jamrah itself.
- ➔ Throwing each pebble separately, meaning that they should be thrown one after another. It is not valid to throw all seven in one go, and if someone does throw all seven in one go, that is only counted as one throw.
- ➔ It is permissible to stone the Jamaraat at night during the days of at-Tashreeq. The Prophet ﷺ stated the beginning of the time for stoning the Jamaraat, but he did not state when it ends.
- ➔ It is not permissible to delegate someone else to stone the Jamaraat except in the case of one who is unable to do it, by night or by day, such as a pregnant woman who fears for her child, or one who is sick, and the like. It is not permissible for anyone to agree to do the stoning for someone unless he is also a pilgrim.
- ➔ If someone is uncertain as to whether he has thrown seven pebbles, or thrown fewer or more than that, he should assume that he has thrown the lower number, so as to make sure that he has thrown seven.
- ➔ If he forgets or makes a mistake in throwing one or two pebbles, he should give some food in charity.



6

Shaving the head or cutting the hair, because Allah ﷻ says: *{Certainly has Allah showed to His Messenger the vision in truth. You will surely enter al-Masjid al-Haram, if Allah wills, in safety, with your heads shaved and [hair] shortened, not fearing [anyone]. He knew what you did not know and has arranged before that a conquest near [at hand]}* [al-Fath 48:27].

It was narrated from Abdullah ibn Umar ﷺ that the Messenger of Allah ﷺ said: «**O Allah, have mercy on those who shave their heads.**» They said: And those who cut their hair, O Messenger of Allah? He said: «**O Allah, have mercy on those who shave their heads.**» They said: And those who cut their hair, O Messenger of Allah? He said: «**And those who cut their hair.**» Agreed upon. And because that is what the Prophet ﷺ did.

7

Tawaf al-wada (the farewell tawaf) for all pilgrims except women who are menstruating or bleeding following childbirth, because Ibn Abbas ﷺ said: The people were instructed that the last thing they should do [in Makkah] is circumambulate the Kaaba, except that this was waived for menstruating women. Agreed upon.

Cutting or shortening some parts of the hair is not sufficient for exiting ihram; what is required is to shorten the hair all over the head.



Description of Hajj:

When a person wants to do Hajj, he should head towards Makkah during the months of Hajj. The best option, when he reaches the miqat, is to enter ihram for Umrah first, so that he will be doing tamattu.

However, he may also enter ihram for Hajj only (ifrad), or for Hajj and Umrah together (qiran). So he may say, “Labbayka Allahumma Hajjan (Here I am, O Allah, for Hajj)” or “Labbayka Allahumma Hajjan wa Umran (Here I am, O Allah, for Hajj and Umrah)” or “Labbayka Allahumma Umran wa Hajjan (Here I am, O Allah, for Umrah and Hajj).”

When entering ihram, it is Sunnah to do ghusl as for janabah; ghusl is Sunnah for both men and women, even those who are menstruating or bleeding following childbirth.

So a man should do ghusl and put on perfume, then put on the ihram garments.

Then the pilgrim should recite the talbiyah: “Labbayka Al-lahumma labbayk, labbayka laa shareeka laka labbayk. Inna alhamda wa’n-ni’mata laka wa’l-mulk, laa shareeka lak (Here I am, O Allah, here I am. Here I am, You have no partner, here I am. Verily all praise and blessings are Yours, and all sovereignty; You have no partner).” And he should continue to recite the talbiyah until he reaches Makkah.

It is Sunnah for men to raise the voice when reciting the talbiyah, to the extent that Ibn Abbas رضي الله عنه said: “We used to shout it out loud.” Narrated by Muslim.

It is encouraged to repeat it and to recite it at every opportunity.

In the case of Umrah, the talbiyah ceases when one begins tawaf. In the case of Hajj, it ceases when one starts to stone Jamrat al-Aqabah.

➔ When one is close to Makkah, it is good to do ghusl before entering the city, as Ibn Umar رضي الله عنه narrated that the Prophet صلى الله عليه وسلم did that.

Then the pilgrim enters al-Masjid al-Haram, and immediately begins tawaf. If he is doing ifrad or qiran, then it is tawaf al-qudoom (the tawaf of arrival), and if he is doing tamattu then it is the tawaf of Umrah.

Once he starts to do tawaf, he stops reciting the talbiyah. He starts his tawaf at the Black Stone, touching it and kissing it if possible, otherwise he points to it, and says in the first circuit only: “Bismillah wa Allahu akbar. Allahumma eemanan bika wa tasdeeqan bi kitabika wa wafa’an bi ahdiika wa ittiba’an li sunnati nabiyyika sall Allahu alayhi wa sallam (In the name of Allah, Allah is most great. O Allah, out of faith in You, and in belief in Your Book, and in fulfilment of Your covenant, and following the Sunnah of Your Prophet Muhammad صلى الله عليه وسلم).”

Then he says takbeer at the beginning of each circuit, touching the Black Stone if possible, otherwise he should point to it.

The early generations regarded it as recommended (mustahabb) to recite the talbiyah in four instances: following the prayers, when going down into a valley, when coming up out of a valley, and when meeting other groups of travellers.

Ibn al-Mundhir said: Doing ghusl when entering Makkah is encouraged (mustahabb) according to all scholars, but in their view there is no compensation (fidyah) required if one does not do it.



It was narrated from an-Nasai with a sahih isnad from the Prophet صلى الله عليه وسلم that the Black Stone is one of the stones of Paradise. As for the hadith narrated by at-Tirmidhi, which says that the Black Stone was white, then the sins of the sons of Adam turned it black, it is daeef (weak).

Then, with the Kaaba to his left, he walks around it seven times, starting and ending at the Black Stone. He should not touch any part of the Kaaba except the Black Stone and the Yemeni Corner (ar-Rukn al-Yamani). It is not prescribed to kiss the Yemeni Corner or to say takbeer when touching it or coming in line with it, because there is no report to that effect from the Prophet ﷺ. In this tawaf, it is Sunnah for men to walk rapidly with short steps (raml) in the first three circuits, and to wear the rida in such a way that it leaves the right shoulder uncovered (idtiba) throughout tawaf, and to say between the Yemeni Corner and the Black Stone: *{Rabbana aatina fi'd-dunya hasanah wa fi'l-akhirati hasanah wa qinna adhaab an-nar (Our Lord, give us in this world [that which is] good and in the Hereafter [that which is] good and protect us from the punishment of the Fire)}* [al-Baqarah 2:201]. During the rest of his tawaf he may say whatever he wishes of dhikr (remembering Allah) and dua (supplication).



Tawaf is not valid if one passes through the Hijr, because the Hijr is part of the Kaaba, and tawaf must be done around the Kaaba.

Then at the Maqam he recites the verse *{And take, [O believers], from the standing place of Abraham a place of prayer}* [al-Baqarah 2:125], then prays two rakahs behind Maqam Ibrahim, if possible; otherwise he may pray in any spot in the mosque, reciting Surat al-Kafirun and Surat al-Ikhlās after al-Fatihah in the two rakahs.

It is Sunnah to drink from Zamzam and wash one's head with it, because of what is mentioned in the hadith of Jabir رضي الله عنه: [The Prophet ﷺ] prayed two rakahs, then he went back to the Black Stone, then he went to Zamzam and drank from it and poured some water on his head.



Then the pilgrim goes out to as-Safa, and when he draws near to it he recites, *{Indeed, al-Safa and al-Marwah are among the symbols of Allah. So whoever makes Hajj to the House or performs 'umrah - there is no blame upon him for walking between them. And whoever volunteers good - then indeed, Allah is Appreciative and Knowing}* [al-Baqarah 2:158].

Then he comes down, heading towards al-Marwah. It is Sunnah to run fast between the two green markers, if it is possible to do so without bothering anyone, after which he walks at a normal pace to al-Marwah. He does this for seven laps, and when he has completed them, he cuts his hair, shortening the hair all over his head, so that it can be clearly seen on his head.

It is not stipulated that one should be in a state of purity in order to do sa'i, although that is preferable. It is also permissible for a menstruating woman to do sa'i.



There is no report from the Messenger of Allah ﷺ to indicate that there is any specific supplication to be recited in the laps between as-Safa and al-Marwah.

A woman should trim the length of a fingertip from all the ends of her hair.

Then the pilgrim exits ihram completely if he is doing tamattu.

But if he is doing ifrad or qiran, then he may do sa'i between as-Safa and al-Marwah and not exit ihram by shaving his head or cutting his hair; rather he remains in ihram until he exits ihram on the Day of Sacrifice.

➔ On the eighth day of Dhu'l-Hijjah, the one who is doing tamattu enters ihram for Hajj, by doing ghusl, putting on perfume, and putting on the ihram garments. Then he goes out to Mina, where he prays Zuhr, Asr, Maghrib, Isha and Fajr, shortening the [four-rakah] prayers but not putting prayers together. It is Sunnah to spend that night in Mina.

➔ Then when the sun rises on the ninth day [of Dhu'l-Hijjah], he goes to Arafah, halting at Namirah if possible; otherwise he carries on to Arafah and halts there.

When the sun has passed the meridian, he prays Zuhr and Asr, shortening the prayers and putting them together at the time of the earlier prayer, then he focuses on remembering Allah, calling upon Him, seeking forgiveness, reading Quran, and so on.

It is Sunnah to spend most of the day in offering supplication (dua). The Prophet ﷺ remained standing, offering supplication, until the sun set, and most of his supplication in that blessed standing was: "Laa ilaaha illa Allah wahdahu laa shareeka lah, lahu'l-mulk wa lahu'l-hamd wa huwa ala kulli shay'in qadeer (There is no god worthy of worship except Allah Alone, with no partner or associate; His is the dominion, to Him be praise, and He has power over all things)."



It is Sunnah for the pilgrim not to fast on the Day of Arafah. It was narrated from Umm al-Fadl bint al-Harith رضي الله عنها that she sent a vessel of milk to the Prophet ﷺ when he was standing atop his camel, and he drank it. Narrated by al-Bukhari.

An-Nawawi said: Staying overnight in Mina on the night before the eighth [of Dhu'l-Hijjah] is Sunnah, but if someone does not do it, he is not required to offer a compensatory sacrifice, according to scholarly consensus.



When the sun sets on the day of Arafah, the pilgrim sets out for Muzdalifah, where he prays Maghrib and Isha, shortening the prayers and putting them together, then he remains there until he prays Fajr.

When he has prayed Fajr, he goes to al-Mash'ar al-Haram, which is now the mosque of Muzdalifah, and stands facing towards the qiblah, remembering Allah ﷻ, praising Him, proclaiming His oneness, magnifying Him, reciting the talbiyah and offering supplication until it has become very light. Then after that he moves on to Mina.



It is permissible for those who are physically weak and those who have excuses, both men and women and those who are accompanying them, to move on from Muzdalifah to Mina once the moon has set, or most of the night has passed.

The Prophet ﷺ differed from the polytheists in several aspects of Hajj, including the following:

1



By moving on from Arafah after the sun set; the disbelievers used to move on before sunset.

2



By setting out from Muzdalifah before the sun rose; the disbelievers used to set out from it after sunrise.

3



By not halting in the wadi of Muhassir; the disbelievers used to halt there, and boast about their lineages and prominence.



When the pilgrim reaches Mina, he hastens to stone Jamrat al-Aqabah first, before doing anything else, throwing seven pebbles and saying takbeer with each throw. Then he slaughters his sacrificial animal, then he shaves his head; shaving the head is better than cutting the hair. Women should cut a fingertip's length from the ends of their hair. At that point the pilgrim has exited the first stage of ihram, and it becomes permissible for him to do all the things that were prohibited whilst in ihram, except marital relations.



After applying perfume and putting on his regular clothes, he goes down to Makkah and does tawaf al-ifadah, followed by sa'i if he is doing tamattu, or if he is doing ifrad or qiran and did not do sa'i before that. Thus he exits ihram completely and everything becomes permissible to him, including marital relations.



What the pilgrim does on the day of Eid:

1. Stoning Jamrat al-Aqabah. - 2. Offering his sacrifice. - 3. Shaving his head or cutting his hair. - 4. Tawaf al-Ifadah. - 5. Sa'i between as-Safa and al-Marwah.



The pilgrim should do these five rituals in this order, but if he does one of them before the others, it does not matter, because on the day of Eid, the Prophet ﷺ was not asked about any ritual that had been done before or after another but he said: **«Do it; no problem.»** Agreed upon.

➔ When the pilgrim has finished doing these actions, he must stay overnight in Mina on the night before the eleventh [of Dhu'l-Hijjah], the night before the twelfth, and the night before the thirteenth, for the one who wants to delay his departure, because Allah ﷻ says: *{And remember Allah during [specific] numbered days. Then whoever hastens [his departure] in two days - there is no sin upon him; and whoever delays [until the third] - there is no sin upon him - for him who fears Allah. And fear Allah and know that unto Him you will be gathered}* [al-Baqarah 2:203]. It is valid to spend most of the night there.

➔ When the sun has passed the meridian on the eleventh, he stones the three Jamaraat, starting with the smallest Jamrah, stoning it with seven pebbles throwing them one after another, saying takbeer with each throw. Then he moves forward and stands to the right [of the Jamrah], facing towards the qiblah, raising his hands and calling upon Allah ﷻ in a lengthy supplication.

Then he heads towards the middle Jamrah and stones it with seven pebbles throwing them one after another, saying takbeer with each throw. Then he moves forward and stands to the left [of the Jamrah], facing towards the qiblah, raising his hands and calling upon Allah ﷻ in a lengthy supplication.

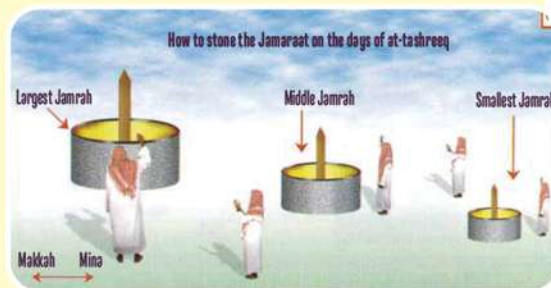
Exiting ihram is of two types: minor and major.

The minor type is when one exits ihram and everything that was prohibited during ihram becomes permissible, except marital relations. This occurs when the pilgrim has stoned Jamrat al-Aqabah and shaved his head or cut his hair; it was also said that it occurs when he has stoned the Jamrah only, but the former view is more prudent.

The major type is when one exits ihram completely and everything that was prohibited during ihram becomes permissible, including marital relations. This occurs when the pilgrim has stoned Jamrat al-Aqabah, shaved his head or cut his hair, then done tawaf and sa'i.

Then he heads towards Jamrat al-Aqabah and stones it with seven pebbles throwing them one after another, saying takbeer with each throw. He does not stand beside it after that, following the example of the Messenger of Allah ﷺ.

- ➔ He does the same on the twelfth day, stoning the three Jamaraat. When the pilgrim has finished stoning the Jamaraat on the twelfth day, if he wishes he may depart early, and if he wishes he may delay his departure and stone the three Jamaraat after the sun has passed the meridian on the following day. Delaying one's departure is preferable.



It does not become obligatory for a pilgrim to delay departure until the sun sets on the twelfth day when he is still in Mina and has not tried to leave. In that case, he must delay his departure until after he has stoned the three Jamaraat after the sun passes the meridian on the following day.

If the sun sets on the twelfth and he is still in Mina although that was not his choice, because of the severity of the crowds and the like, then he does not have to delay his departure.

- ➔ When he has finished stoning the Jamaraat, he should not leave Makkah and head home until he has done the farewell tawaf (tawaf al-wada), because of the hadith of Ibn Abbas, who said: The people would disperse in all directions. And the Prophet ﷺ said: «**No one of you should leave until the last thing he has done is to circumambulate the House.**» Narrated by Muslim.

But if a woman is menstruating or bleeding following childbirth, and she has already done tawaf al-ifadah, then the farewell tawaf is waived in her case, because of the hadith of Ibn Abbas, who said: The people were instructed that the last thing they should do in Makkah was to circumambulate the Kaaba, but an exception was made for the woman who is menstruating. Agreed upon.

1

If a pilgrim delays his departure after the farewell tawaf in order to buy something on his way, or to wait for his companions, there is no blame on him.

2

If he delays tawaf al-ifadah, then wants to leave Makkah, it is acceptable for him to do tawaf al-ifadah and it will count as the farewell tawaf too; if he forms the intention to do tawaf al-ifadah, that will be sufficient.





Delegating someone to stone the Jamaraat on one's behalf:

- ➔ If someone is not able to stone the Jamaraat for a reason for which there is no hope that it will be relieved before the time for stoning ends, he may appoint someone to stone the Jamaraat on his behalf. This is the view of the majority of fuqaha.
- ➔ It is permissible for one who is sick to appoint someone to do that on his behalf; it is also permissible for a pregnant woman who fears for herself, for a nursing mother who does not have someone to look after her children, for one who is elderly, and the like.
- ➔ The one who is appointed as a proxy should stone the Jamaraat on his own behalf and on behalf of the one who appointed him as a proxy at the same time, doing it for himself first and then on behalf of the one who appointed him as a proxy.
- ➔ It is not permissible to appoint someone as a proxy to stone the Jamaraat except one who is also a pilgrim. As for the one who is not doing Hajj, he does not have the right to act as a proxy on behalf of someone else to stone the Jamaraat, and his stoning them is not acceptable on behalf of someone else.
- ➔ If someone has appointed someone else to stone the Jamaraat on his behalf for a legitimate reason, it is not permissible for him to do the farewell tawaf before his proxy has stoned the Jamaraat, because that is the time at which he is given permission to leave.



Activities

Complete the following:

- 1 When the sun rises on the ninth day of Dhu'l-Hijjah, which is the day of, the pilgrim moves from Mina to, reciting the talbiyah and takbeer. Then he halts in until the sun passes the meridian, which is a place near....., but is not part of it.
- 2 The Sunnah with regard to the pebbles for stoning the Jamaraat is that they should be, between a chickpea and a hazelnut; it is not permissible to throw pebbles.
- 3 The Sunnah is for the pilgrim to go to the Jamaraat if possible. On the eleventh day, after the sun has passed the meridian, he should stone the Jamrah, which is next to Masjid Khayf, throwing seven pebbles one after another, raising his right hand with each throw and saying, facing towards the qiblah if possible.
- 4 If the pilgrim wants to hasten to depart after two days, he should leave Mina before on the day.

The hadiy (sacrificial animal)

The hadiy is an animal of the an'am class (camels, cattle and sheep) which is given (yuhdi) to the Sacred House, as a means of drawing closer to Allah ﷻ.

Types of hadiy (sacrificial animal):

1 Hadiy ash-shukraan (sacrifice of gratitude). This is the hadiy of the pilgrim who does tamattu or qiran. It is obligatory for one who does not reside in the vicinity of the Sacred Mosque. It is a sacrifice that is offered in gratitude to Allah ﷻ for completing the blessing, because Allah ﷻ says: *{then whoever performs 'umrah [during the hajj months] followed by hajj [offers] what can be obtained with ease of sacrificial animals}* [al-Baqarah 2:196].

If he cannot find a sacrificial animal or cannot afford one, he must fast for three days during Hajj – it is permissible to fast them during the days of at-tashreeq – and seven days after he returns to his family, because Allah ﷻ says: *{And whoever cannot find [or afford such an animal] – then a fast of three days during hajj and of seven when you have returned [home]}* [al-Baqarah 2:196].



2 Hadiy al-jubraan (sacrifice of compensation). This is the fadyah (compensation) that must be given for omitting an obligatory part of Hajj, or for committing one of the actions that are forbidden whilst in ihram, or for being prevented from continuing with one's Hajj for some reason, because Allah ﷻ says: *{But if you are prevented, then [offer] what can be obtained with ease of sacrificial animals}* [al-Baqarah 2:196].

It is not permissible to eat any of the meat of this type of sacrifice; rather it must be given in charity to the poor of the Haram.



It is recommended (mustahabb) for the pilgrim to eat some of the meat of his sacrificial animal, for the one who is doing tamattu or qiran, because Allah ﷻ says: *{then eat from them and feed the needy and the beggar}* [al-Hajj 22:36].

It is recommended (mustahabb) for the pilgrim to slaughter his sacrifice himself, but if he appoints someone else to do that on his behalf, there is nothing wrong with that. It is also recommended to say at the time of slaughter: Bismillah Allahumma hadha minka wa laka (In the name of Allah; O Allah, this is from You and for You).



The place of slaughter:

The Sunnah is for the pilgrims who are doing tamattu and qiran to slaughter the sacrificial animals in Mina, but if the slaughter is done anywhere within the Haram zone, that is acceptable.

Similarly, an animal sacrificed in compensation (fidyah) for omitting an obligatory part of Hajj or doing something that is prohibited whilst in ihram should not be slaughtered anywhere except in the Haram zone, with the exception of the sacrificial animal offered by one who is prevented from continuing with his pilgrimage, which he should slaughter in the place where he is.

Conditions of the sacrificial animal:

- 1 It should be one of the an'am animals (camels, cattle and sheep).
- 2 It should be free of the defects that would render it unacceptable, such as being sick, one-eyed, lame or emaciated.
- 3 It should have reached the prescribed age, which for camels is five years, for cattle is two years, for goats is one year, and for sheep is six months.

“Missing” means that the pilgrim entered ihram for Hajj, but he missed the standing in Arafah.

“Being prevented” refers to being detained and not being allowed to proceed, meaning that the pilgrim is prevented from completing the rituals.

Rulings on missing the standing in Arafah and being prevented from continuing with one's Hajj:



Ruling:



- ✓ The one who misses the standing in Arafah or is prevented from reaching Arafah has missed out on Hajj and should exit ihram following Umrah. He should make it up later on, if his Hajj was obligatory, and he should offer a sacrifice; however, if he had stipulated a condition beforehand [that he would exit ihram if he was prevented from continuing], then he does not have to do anything.
- ✓ If someone is prevented from reaching the Kaaba because the way is barred by an enemy, or he falls sick, or no longer has the means to carry on, and the like, then if he had stipulated a condition beforehand [that he would exit ihram if he was prevented from continuing], he may exit ihram and nothing further is required of him. If he did not stipulate a condition beforehand, he should offer a sacrifice of whatever he can afford, then shave his head or cut his hair, then exit ihram. Allah ﷻ says: *{But if you are prevented, then [offer] what can be obtained with ease of sacrificial animals}* [al-Baqarah 2:196].
- ➡ What is meant by stipulating a condition beforehand: it is prescribed for the one who wants to enter ihram but fears that something may prevent him from completing his pilgrimage to stipulate a condition beforehand, by saying: "If something prevents me from continuing, I will exit ihram from the point where You prevented me." Then if he is prevented from completing his pilgrimage, he may exit ihram without doing anything further.
- ✓ If he is prevented from doing an obligatory part of Hajj, such as one who is prevented from standing in Muzdalifah, or staying overnight in Mina, or stoning the Jamaraat, he should not exit ihram; rather he should continue with his rituals, and compensate for this obligatory part by offering a sacrifice.

Activities

- 1 Speak about missing the standing in Arafah and being prevented from continuing from a linguistic point of view and in terms of the rulings on these situations.
- 2 The scholars disputed concerning one who is unable to offer a sacrifice in the event of being prevented from continuing with his pilgrimage: does he have to fast? Discuss this difference of opinion, and explain which view is most likely to be correct, based on evidence.
- 3 List the types of sacrificial animals, in brief, and explain what is meant by compensation for hunting.

Umrah

In linguistic terms, Umrah means visiting.

In Islamic terminology, it means worshipping Allah ﷻ by visiting the sacred House of Allah, in a specific manner

The virtue of Umrah:

Umrah is one of the noblest acts of worship and one of the best deeds by means of which one may draw close to Allah; by means of it Allah raises His slaves in status and erases sins from them. The Prophet ﷺ encouraged the Muslims to do it in word and deed, as he ﷺ said: **«Do Hajj and Umrah one after the other, for they eliminate poverty and sins as the bellows eliminate the dross of iron.»** Narrated by at-Tirmidhi and an-Nasai; classed as sahih by al-Albani.

Its prescription:

Umrah is prescribed by the verse in which Allah ﷻ says: *{And complete the hajj and 'umrah for Allah}* [al-Baqarah 2:196].

In the Sunnah, it was narrated from Abu Hurayrah ؓ that the Messenger of Allah ﷺ said: **«From one Umrah to the next is an expiation for whatever [sins] come in between them.»** Narrated by Muslim.

The Messenger of Allah ﷺ did Umrah four times:

Al-Hudaybiyyah

the make-up
Umrah (Um-
rat al-qada)

al-
Ji'iranaḥ

with the
Farewell
Pilgrimage

The scholars are unanimously agreed that it is prescribed.

Ruling on Umrah:

Umrah is obligatory once in a lifetime.

It is prescribed at any time of the year, but it is better in Ramadan than at any other time.

The Prophet ﷺ said to Umm Sinan ؓ; **«When Ramadan comes, do Umrah, for Umrah in Ramadan is equivalent to Hajj.»** Agreed upon. According to another report, he said: **«... equivalent to Hajj with me.»**

» Essential parts of Umrah:

- 1 Forming the intention to enter ihram, because the Prophet ﷺ said: «**Actions are but by intentions.**» Agreed upon.
- 2 Tawaf, because Allah ﷻ says: *{and perform Tawaf around the ancient House}* [al-Hajj 22:29]. And because that is what the Prophet ﷺ did.
- 3 Sa'i, because Allah ﷻ says: *{Indeed, al-Safa and al-Marwah are among the symbols of Allah}* [al-Baqarah 2:158]. And because that is what the Prophet ﷺ did.

« Obligatory parts of Umrah:

- 1 Entering ihram from the miqat. If a person lives within the boundary of the miqats, then he should enter ihram from his home.

For one who is a resident of Makkah, he must go out of the boundary of the Haram zone and enter ihram from there, because the Prophet ﷺ instructed Aisha رضى الله عنها to enter ihram from at-Taneem. Agreed upon.

When entering ihram, the pilgrim should say: *Labbayka Allahumma Umratan* (Here I am, O Allah, for Umrah). Then he should continue reciting the talbiyah with the well-known wording until he starts tawaf.

- 2 Shaving the head or cutting the hair. Shaving is preferable, except for one who is doing tamattu. **In the case of cutting the hair, what is required is to remove hair from all over the head.**

» Intercourse during Umrah:

It is not permissible for the one who is in ihram for Umrah to have intercourse until he has exited ihram. If he has intercourse during Umrah before finishing sa'i, his Umrah is rendered invalid, but he has to continue it, then make it up, as well as sacrificing a sheep on behalf of each spouse, if his wife did that willingly. The sacrifice is to be slaughtered and distributed to the poor of Makkah.

With regard to having intercourse after doing sa'i and before shaving the head or cutting the hair, that does not invalidate Umrah, but a fidyah (compensation) must be given.

Description of Umrah: it has been described above in the discussion on how Hajj is done.

Activities

Answer the following:

- 1 Speak about Umrah in terms of its definition, its essential parts, its obligatory parts and how it is done.
.....
- 2 From where should a person enter ihram for Umrah if his home is within the boundary of the miqat?
.....
- 3 How would you respond to one who regards Jeddah as a miqat?
.....

Complete the following:

- 4 refers to when the pilgrim in ihram puts the middle of his rida under his right arm and places its ends over his left shoulder in all the circuits of tawaf. That is done in the tawaf of
- 5 It is Sunnah for the pilgrim in ihram to walk rapidly with short steps, which in Arabic is called, in the first circuits of tawaf, from the Black Stone to the Black Stone, and to walk at a normal pace in the last circuits. Raml is only for
- 6 When the pilgrim in ihram starts to climb as-Safa, he should recite the verse in which Allah ﷻ says:, then he should say: "I start with".
- 7 It is Sunnah for the pilgrim in ihram to touch and kiss the Stone in each circuit, if possible, and not to touch the two corners. He may cling to what is between and after the tawaf of arrival or the tawaf of farewell, or other tawafs, by pressing his chest, face and forearms against it and calling upon Allah ﷻ and asking of Him.

5

Udhiyah and aqeeqah



> In this unit we will study

Udhiyah and aqeeqah

Conditions of the udhiyah (sacrifice)

Conditions of ḥalāl slaughter

Aqeeqah and the rulings thereon

Udhiyah and aqeeqah

Udhiyah refers to that which is sacrificed as a means of drawing closer to Allah – camels, cattle or sheep – on the day of Eid.

It is called udhiyah because it is slaughtered at the time of mid-morning (duha) on the day of Eid.



Ruling on udhiyah:

Udhiyah is a confirmed Sunnah (Sunnah muakadah). This is the view of the majority of scholars, because Allah ﷻ says: *{So pray to your Lord and sacrifice [to Him Alone]}* [al-Kawthar 108:2].

And because it was narrated from Anas رضي الله عنه that the Prophet ﷺ sacrificed two horned rams that were white speckled with black, slaughtering them with his own hand. He said Bismillah and Allahu akbar, and put his foot on their necks. Agreed upon.

And because the Sahabah رضي الله عنهم – such as Abu Bakr, Umar and others رضي الله عنهم – refrained from doing it even though they were able to, for fear that it might be thought to be obligatory. If it was obligatory, they would not have refrained from doing it.

Imam Ahmad said: Offering the udhiyah is better than giving its value in charity.

When the first ten days of Dhu'l-Hijjah begin, it is not permissible for the one who wants to offer an udhiyah to remove anything from his hair, nails or skin until he has offered his sacrifice, because the Prophet ﷺ said: **«When you see the new moon of Dhu'l-Hijjah, and one of you wants to offer a sacrifice, let him refrain from (removing anything) from his hair or nails.»** Narrated by Muslim. But if he needs to remove anything of that, there is no blame on him and he does not have to do anything in compensation for that.



One sheep, or one seventh of a camel, or one seventh of a cow is acceptable on behalf of the members of a household, because of the report narrated from Abu Ayub رضي الله عنه: At the time of the Messenger of Allah ﷺ, a man would sacrifice a sheep on behalf of himself and his household, and they would eat from it and give some to others. Narrated by at-Tirmidhi and Ibn Majah; classed as sahih by al-Albani.

And Jabir رضي الله عنه narrated: In the year of al-Hudaybiyyah, we sacrificed with the Messenger of Allah ﷺ a camel on behalf of seven people, and a cow on behalf of seven people. Narrated by Muslim.

Based on that, it is permissible to share in the udhiyah, if the animal offered is a camel or a cow. In the case of a sheep, it is not permissible to share it. The evidence for that is the hadiths quoted above.

With regard to sharing in the reward, that is broader in scope; it is permissible for the one who sacrifices a sheep to include whoever else he wants with him in the reward.

Sharing an udhiyah:

Conditions of the udhiyah:

In order for the udhiyah to be valid, the following conditions are stipulated:

1

It should be one of the an'ām animals, which are camels, cattle and sheep, because Allah ﷻ says: *{For every nation We ordained rites of sacrifice, so that they might mention the name of Allah [at the time of sacrifice] over the livestock [baheemat al-an'uam] that He provided for them}* [al-Hajj 22:34].

2

It should have reached the age prescribed in Islamic teachings, because of the hadith of Jabir رضي الله عنه, according to which the Messenger of Allah ﷺ said: **«Do not slaughter anything but a musinnah, unless you cannot afford it, in which case you may slaughter a young sheep (jadh'ah min ad-da'n).»** Narrated by Muslim.

In the case of camels, the musinnah is one that is five years old; in the case of cattle, it is one that is two years old; in the case of goats, it is one that is one year old. And the jadh'ah is a sheep that is six months old.

3

It should be free from any defects that would prevent it from being acceptable.

The defects that prevent an animal from being acceptable are:

- 1 Being obviously one-eyed, such as if the eye socket is empty or the eye is bulging. Being blind is also regarded as a defect. However, if the eye looks normal but the animal cannot see with it, or there is whiteness in the eye, the animal is acceptable.
- 2 Being emaciated, which refers to an animal that is extremely lean and has no fat on it.
- 3 Being obviously lame, as well as an animal whose foreleg or hind leg has been cut off or is broken. If its lameness is mild, then it is acceptable.
- 4 Being obviously sick. This refers to an animal in which the effects of sickness can be clearly seen.
- 5 A sheep whose tail has been cut off. If the tail, or most of it, has been cut off, the sheep is not acceptable as a sacrifice. Ibn Qudamah رحمته الله said: The animal of which some part has been cut off, such as the tail, is not acceptable.

The evidence for that is the hadith of al-Bara ibn Azib رضي الله عنه, who said: The Messenger of Allah ﷺ stood before us and said: **«There are four [animals] that are not acceptable as udhiyah: the one that is obviously one-eyed, the one that is obviously sick, the one that is clearly lame, and the one that is so emaciated that it can hardly stand up.»** Narrated by Ahmad and by at-Tirmidhi, who classed it as sahih.



Defects that do not make the animal unacceptable as a sacrifice, although it is disliked (makruh) to offer them:

- 1** Having half or more of the ears or horns cut off.
- 2** Having a slit made widthwise in the ear at the front.
- 3** Having a slit made widthwise in the ear at the back.
- 4** Having a slit made lengthwise in the ear.
- 5** Having holes made in the ears.
- 6** Having the horns removed completely.
- 7** Having lost its sight although the eyes are still there.
- 8** Having had less than half of the tail cut off. If half or more of the tail has been cut off, then the majority of scholars are of the view that it is not acceptable, as noted above.

But if the animal never had a tail in the first place, there is nothing wrong with it.

- 9** Having had its penis cut off.
- 10** Having lost some of its teeth. However, if the teeth were never there in the first place, it is not disliked.

➡ ➡ **The Sunnah is to slaughter one's hadiy or udhiyah oneself; if a person is not skilled in slaughtering, he should attend the slaughter, but he should not give anything of the udhiyah to the butcher in return for slaughtering it.**

Conditions of halal slaughter:

There are four conditions stipulated for halal slaughter:

1

The slaughterman should be qualified, meaning that he should be of sound mind and a Muslim. If it is not an udhiyah, it is acceptable for the animal to be slaughtered by one of the People of the Book (a Jew or a Christian).

2

In terms of equipment used, it is permissible to slaughter with anything sharp, except teeth and nails, because the Prophet ﷺ said: **«Whatever causes the blood to flow, apart from teeth and nails, then eat.»** Agreed upon.



3

The two veins [in the neck] should be cut; the best is to also cut both the oesophagus and trachea.



4

The slaughterman should say Bismillah at the time of slaughter; it is not acceptable to say anything else, because Allah ﷻ says: *{And do not eat of that upon which the name of Allah has not been mentioned, for indeed, it is grave disobedience}* [al-An'am 6:121]. And because the Prophet ﷺ said: **«Whatever causes the blood to flow and Allah's name has been mentioned over it, then eat.»** Agreed upon.

The time for slaughtering the udhiyah:

The time for slaughtering begins after Eid prayer on the Day of Sacrifice, and lasts until sunset on the last of the days of at-tashreeq. Whoever slaughters it before the Eid prayer has ended, or after sunset on the thirteenth [of Dhu'l-Hijjah], his udhiyah is not valid, because of the report narrated by al-Bukhari from al-Bara ibn Azib رضي الله عنه, according to which the Prophet ﷺ said: **«Whoever slaughters [his sacrifice] before the prayer, it is just meat that he has brought for his family, and has nothing to do with the sacrifice.»**

And the Prophet ﷺ said: **«Whoever slaughtered [his sacrifice] before he prayed, let him replace it with another one.»** Narrated by al-Bukhari.

The Sunnah with regard to the meat of the udhiyah:

It is Sunnah for the one who has offered the udhiyah to eat some of it, give some of it to his neighbours and friends, and give some of it in charity to the poor, because Allah ﷻ says: *{then eat thereof and feed the wretched poor}* [al-Hajj 22:28].

It is permissible for him to store the meat, because of the report narrated from Buraydah رضي الله عنه, according to which the Prophet ﷺ said: **«I had forbidden you to store the meat of the sacrifice for more than three days, but now keep it as long as you wish.»** Narrated by Muslim.

It is haram to slaughter anything for anyone other than Allah, and doing so incurs a curse. Allah ﷻ says, in the context of stating what is forbidden: *{and those which are sacrificed on stone altars}* [al-Ma'idah 5:3].

And the Prophet ﷺ said: **«May Allah curse the one who makes a sacrifice to anything or anyone other than Allah.»** Narrated by Muslim.



Meat slaughtered by a woman or a child is permissible:

Ibn al-Mundhir said: All of the scholars from whom we acquired knowledge are unanimously agreed that meat slaughtered by a woman or a child is permissible. That is because of the hadith of Ka'b ibn Malik رضي الله عنه, according to which a slave woman of theirs used to tend sheep at Sal' – a well-known mountain in Madinah. She saw a sheep that was dying, so she broke a rock and slaughtered it [before it died]. Her master said to his family: Do not eat until I go to the Prophet ﷺ and ask him, or I send someone to ask him. So he came to the Prophet ﷺ, and the Prophet ﷺ told him to eat it. Agreed upon.

Aqeeqah:

In linguistic terms, aqeeqah is derived from al-aq, which means cutting.

In Islamic terminology, it refers to an animal that is slaughtered in gratitude to Allah ﷻ for the blessing of a newborn child, male or female.

Ruling on aqeeqah

Aqeeqah is a confirmed Sunnah (Sunnah muakkadah) because of the proven report from Samurah رضي الله عنه, according to which the Prophet ﷺ said: «**Every child is held in pledge for his aqeeqah until it is offered on his behalf on the seventh day, when he is given his name and his head is shaved.**» Narrated by Abu Dawud and at-Tirmidhi; classed as sahih by al-Albani. Regarding the meaning of being held in pledge, it was said that it means that he is detained and prevented from feeling at ease or being free.

Conditions of the aqeeqah:

The conditions of the aqeeqah are the same as the conditions of the udhiyah.

- ✓ The animal should have reached the prescribed age.
- ✓ It should be one of the an'am animals.
- ✓ It should be free of defects.

Amount to be offered as aqeeqah:

Two sheep on behalf of a boy and one sheep on behalf of a girl. The Prophet ﷺ said: «**If a child is born to someone and he wants to offer an aqeeqah on his behalf, let him do so, two sheep of equal age on behalf of a boy and one sheep on behalf of a girl.**» Narrated by Abu Dawud and an-Nasai; classed as sahih by al-Albani.

Shaykh al-Islam Ibn Taymiyyah said: The one who cannot afford an animal to sacrifice as an udhiyah or aqeeqah may borrow money and offer the udhiyah or aqeeqah, if he is able to pay it back.

The time for aqeeqah:

The Sunnah is to slaughter the aqeeqah on the seventh day after birth. If that time is missed, then it should be done on the fourteenth day; if that time is missed, it should be on the twenty-first day; and if that time is missed, it may be done on any day.

So if the child is born on Saturday, then the aqeeqah should be slaughtered on the following Friday – that is, one day before the day on which he was born, so that the week will be completed. This is the guideline.

It is Sunnah to eat from the aqeeqah, to give some as gifts and to give some as charity. If one wishes, he may invite his friends, relatives and neighbours to gather to eat that meat.

Related issues:

- ➔ When it comes to the aqeeqah, it is not valid to share a single animal. Thus it is not valid to offer one camel on behalf of two newborns, or one cow on behalf of two newborns, or one sheep on behalf of two newborns, because the aqeeqah is offered as a ransom for one individual.
- ➔ The aqeeqah may be offered on behalf of a son by the mother instead of the father, if the father is deceased or incapable. There is nothing wrong with the grandfather offering the aqeeqah, even if he is the mother's father. The Prophet ﷺ offered the aqeeqah on behalf of al-Hasan and al-Husayn, and he was their maternal grandfather.
- ➔ The majority of fuqaha are of the view that it is recommended (mustahabb) to cook all of the aqeeqah, even that which is given in charity, but if it is distributed uncooked, that is permissible.



In the case of aqeeqah, sheep are better than camels or cattle, because the reports of the Sunnah mention sheep. It was narrated from Ibn Abbas رضي الله عنه that the Messenger of Allah ﷺ offered one ram each as aqeeqah for al-Hasan and al-Husayn. Narrated by Abu Dawud. According to a report narrated by an-Nasai, he offered two rams each. Classed as sahih by al-Albani.



Should a Muslim offer aqeeqah for himself when he is an adult, if he knows that no aqeeqah was offered for him?

Al-Hasan said: He should offer aqeeqah for himself, because it is prescribed to be done for him, and because he is held in pledge for it, so it is appropriate that it should be prescribed for him to ransom himself.

- ➔ As for the report which says that the Prophet ﷺ offered aqeeqah for himself after his prophethood began, this is a false report.



Activities

Answer the following:

- 1 From your studies, write about the differences between udhiyah and aqeeqah.
.....
- 2 List the defects which prevent an animal being acceptable as an udhiyah, and five defects that are disliked (makruh).
.....
- 3 State what it is Sunnah to do with the udhiyah after it has been slaughtered.
.....
- 4 Write a brief essay about sharing in an animal for udhiyah; what is the ruling on doing that in the case of aqeeqah? Quote evidence and give reasons for what you say.
.....
- 5 A father is unable to offer the aqeeqah. Is it acceptable for someone else to do it? What is the evidence for that?
.....

Complete the following:

- 6 It is not valid to offer as an udhiyah anything except which includes and, and also includes
- 7 With regard to offering a camel as an udhiyah, it is stipulated that it should have reached the age of; with regard to a cow, it is stipulated that it should have reached the age of; with regard to a goat, it is stipulated that it should have reached the age of In the case of sheep, it is stipulated that it should be a, which is one that has reached the age of And it was said

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And Allah is the source of strength.

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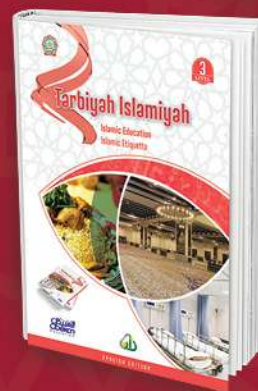
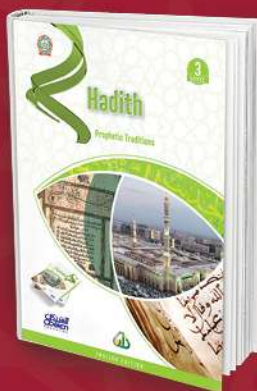


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